

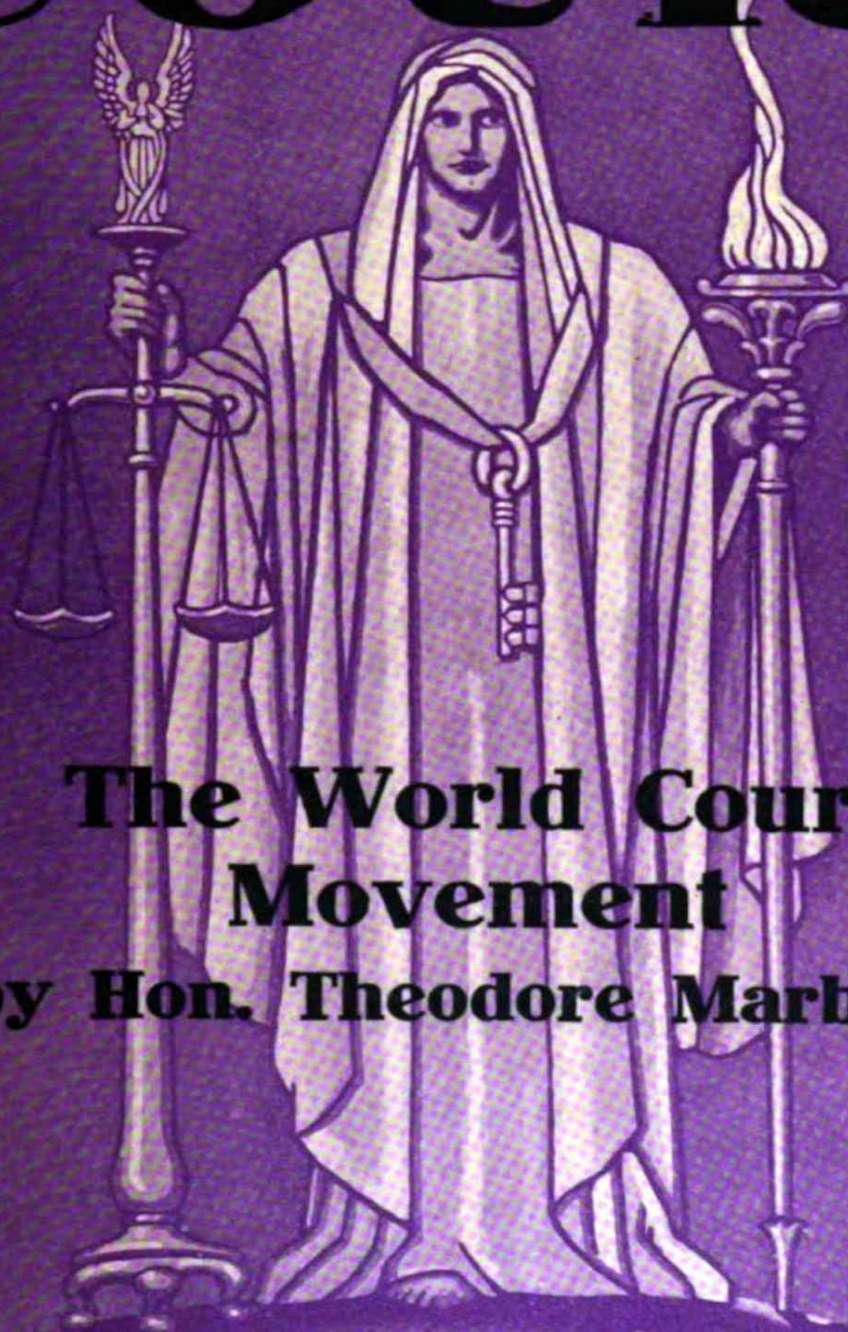
Sept. 1915

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The WORLD COURT

Vol. 1

No. 2



The World Court Movement

by Hon. Theodore Marburg

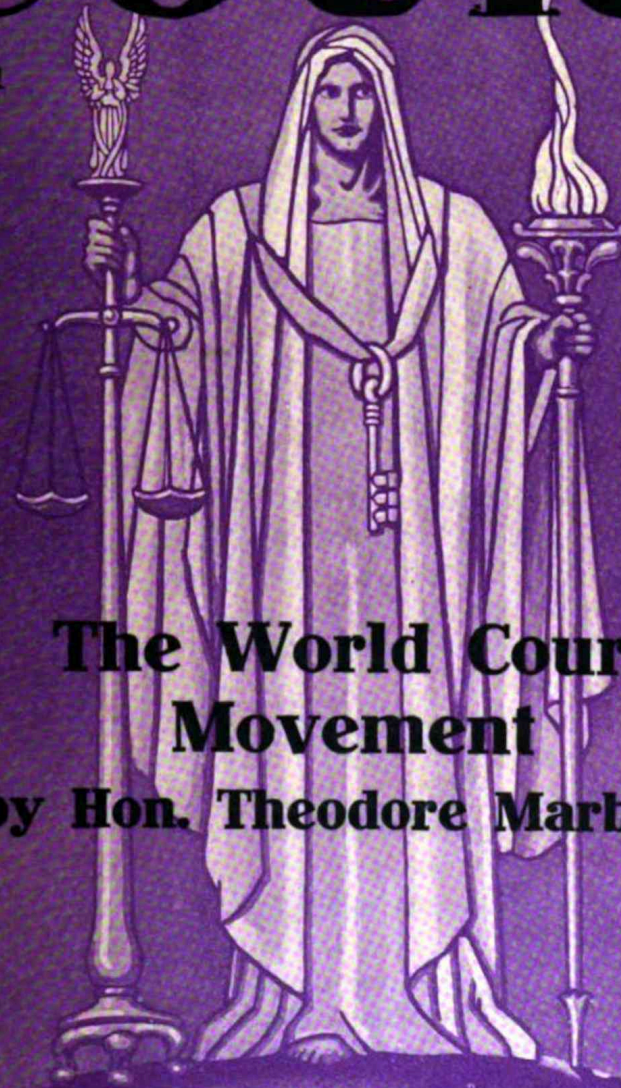
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The PENALTY OF LEADERSHIP

In every field of human endeavor, he that is first must perpetually live in the white light of publicity. ¶Whether the leadership be vested in a man or in a manufactured product, emulation and envy are ever at work. ¶In art, in literature, in music, in industry, the reward and the punishment are always the same. ¶The reward is widespread recognition; the punishment, fierce denial and detraction. ¶When a man's work becomes a standard for the whole world, it also becomes a target for the shafts of the envious few. ¶If his work be merely mediocre, he will be left severely alone—if he achieve a masterpiece, it will set a million tongues a wagging. ¶Jealousy does not protrude its forked tongue at the artist who produces a commonplace painting. ¶Whatever you write, or paint, or play, or sing, or build, no one will strive to surpass or to slander you, unless your work be stamped with the seal of genius. ¶Long, long, after a great work, or a good work has been done, those who are disappointed or envious, continue to cry out that it can not be done. ¶Spiteful little voices in the domain of art were raised against our own Whistler as a mountebank, long after the big world had acclaimed him its greatest artistic genius. ¶Multitudes flocked to Bayreuth to worship at the musical shrine of Wagner, while the little group of those whom he had dethroned and displaced, argued angrily that he was no musician at all. ¶The little world continued to protest that Fulton could never build a steamboat, while the big world flocked to the river banks to see his boat steam by. ¶The leader is assailed because he is a leader, and the effort to equal him is merely added proof of that leadership. ¶Failing to equal or to excel, the follower seeks to depreciate and to destroy—but only confirms once more the superiority of that which he strives to supplant. ¶There is

nothing new in this. ¶It is as old as the world and as old as the human passions—envy, fear, greed, ambition, and the desire to surpass. ¶And it all avails nothing. ¶If the leader truly leads, he remains—the leader. ¶Master-poet, master-painter, master-workman, each in his turn is assailed, and each holds his laurels through the ages. ¶That which is good or great makes itself known, no matter how loud the clamor of denial. ¶That which deserves to live—lives.

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The World Court

TABLE OF CONTENTS, SEPTEMBER, 1915

WORLD COMMENT

[59](#)

THE UNITED STATES NOT A "TENDERFOOT"
MUTUAL OBLIGATION
GERMANY'S MATERIAL ADVANTAGE
A SLANDER OF BRAVE MEN
THOMAS A. EDISON DRAFTED
DR. DILLON ON THE FIRST PHASE OF THE
WAR
A KINDLY VOICE FROM GERMANY
WAR—BUT NOT FAMINE
STRIKES IN WAR TIMES
AN INTERESTING FORECAST
PRESIDENT WILSON'S LAST GERMAN NOTE
"PEACE BY COMPULSION"
THE RED SEA, BY FRANCIS BOWLER PRATT

EDITORIALS

[67](#)

THE LAW OF NATIONS
THE WAR PATH OR THE WORLD STATE
CHINA AND JAPAN
ACTION VERSUS WORDS
ENGLAND AND THE DISINHERITED
THE UNCERTAINTY OF FUTURE EVENTS
THE DUTY OF THE HOUR
THE ARISTOCRACY OF LABOR

THE WORLD COURT MOVEMENT

*By Hon. Theodore
Marburg*

[73](#)

THE WAR'S POSSIBLE DURATION

By George K. Shaw

[79](#)

THE COMPOSITION OF THE WORLD COURT

By Emerson McMillin

[81](#)

THE MINIMUM NUMBER	<i>By Harry A. Garfield</i>	83
THE BREAKDOWN OF "CULTURE" AS A REDEMPTIVE FORCE		86
THE CHURCH AS A FACTOR IN RACIAL RELATIONS	<i>By Rev. Sidney L. Gulick</i>	88
POSSIBILITIES AND LIMITATIONS OF A WORLD COURT	<i>By William Dudley Foulke</i>	90
THE BUSINESS MAN IN POLITICS	<i>By John Hays Hammond</i>	94
PEACE BY COMPULSION	<i>By James Brown Scott</i>	97
THE MILITARIST	<i>By John Edward Oster</i>	98
A PEACE SUGGESTION		100
THE INFORMATION DESK		103

Announcement

The work of creating sentiment favorable to the establishment of a World Court to judicially settle international disputes, now being undertaken by the International Peace Forum, including the publication of the "World Court," involves considerable expense. New subscriptions to the "World Court," in addition to increasing its value and enlarging its influence, will materially help out financially.

To-day, more than ever before, the voice of the people is for the abolition of war. To this end plans are being formed and promulgated. The contributions from the pens of able and influential writers in the "World Court" will keep its readers in close touch with the work.

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WORLD COMMENT

THE UNITED STATES NOT A “TENDERFOOT”

In the old days when the “bad man” flourished on our western frontier the gunmen would occasionally suspend their slaughter of each other to have fun with a “tenderfoot.” An inoffensive easterner landing from the stage would be surrounded by a crowd and would suddenly receive from some one in the crowd an order to dance. If he remonstrated or failed to comply instantly with the demand, a revolver bullet would strike close to his feet, the order would be reiterated, and the poor fellow would be compelled to lift his feet and gyrate to the crash of bullets from a “45” in the hands of a noted desperado, until he was exhausted.

It begins to look as if some of the belligerent powers of Europe would like to make us dance to the crash of diplomatic notes and unjustifiable war measures. In any street row it is usually the innocent bystander that suffers most, and the belligerents evidently don’t care how much this neutral nation may suffer if they can have their own way.

But if we are not mistaken in our guess, Uncle Sam will distinctively and decisively decline to play the rôle of “tenderfoot” for the amusement or profit of European gunmen. The people of this nation will insist upon full recognition of their rights as neutrals—and not only that, but on their privilege to carry on their accustomed activities of travel, trade and industry in accordance with the universally recognized rules of international law. In so far as the administration at Washington insists upon the assertion and exercise of these rights and privileges, in so far will it be backed up by the public sentiment of the nation. In so far as it falls short of maintaining the full height of the dignity of American manhood, in so far will it fall short of its duty and the demands of our intelligent and responsible citizenship.

The people of this country do not want war with any of the belligerent nations, nor do they expect that we will be drawn into the war by the manly assertion of our rights. But dreadful as war is, they would prefer it to seeing our country and our flag made a ridiculous spectacle of pusillanimity and helplessness.

On the other hand, no reasonable citizen wants our government to be bumptious and insulting, or to invite reprisals by exceeding the measure of our just demands. Nor is it likely that a firm and reasonable attitude assumed by the Washington administration will draw us into the war. It is not at all probable that any of the great powers arrayed against each other on European battle fields or the high seas want war with the United States now. On the contrary, any one of them would undoubtedly make sacrifices to avoid it. We do not, however, ask of any of them any sacrifice beyond the observance of the recognized rules of international law and the dictates of humanity. If any nation would declare war against us because we call a halt upon its savagery so far as our own citizens are concerned, we could fight with a good conscience and with a confident trust in the God of justice and mercy.

The United States is not called upon to go to war to protect any of the nations of the Eastern Hemisphere, or the rights and immunities of their citizens. We are not called upon to take sides in the conflict now raging; but we are called upon to protect our own citizens in their lives, their immunities and their world-rights, and if we fall below the measure of this duty history will judge us as a pitiful and decadent race.

MUTUAL OBLIGATION

The obligation of our foreign-born naturalized citizens and of our government is mutual. The naturalized citizens owe loyalty to the United States and the United States owes them protection. The foreigner, taking out his citizenship papers, forswears allegiance to the country of his birth and specifically to the ruler or rulers thereof, and swears to be a true and faithful citizen to the country of his adoption. With this oath upon his soul, any divided allegiance upon his part is treasonable. Politically he stands precisely upon the basis of a native-born citizen. So do his children, whether born in this country or not. His minor children, born abroad, if they have come to the United States with him, become citizens through his naturalization.

While the naturalized citizens thus owe the same undivided allegiance to the country of their adoption that her native citizens owe, the country of their adoption owes them precisely the same protection that it owes the native-born. It owes them and their families the same protection of the laws, the same opportunities for a vocation, the same right to life, liberty and the pursuit of happiness. Our government also owes them the same protection while traveling or temporarily sojourning in foreign countries.

Having exacted from the naturalized citizen the forswearing of his allegiance to the country of his former domicile and its rulers, the United States perhaps owes even a more punctilious obligation to him to protect him in his rights of American citizenship. For if the native country of the naturalized citizen does not recognize his right of expatriation, and insists upon holding him, for instance, to military service, the United States should be ready and able to protect him in his right of exemption from such service. A country that cannot protect its own citizens, whether native or naturalized, has no right to independent existence. In these times the bearing of this point upon the physical power of this government to assert itself and to command respectful attention to its just demands, needs no extended discussion. It is a time when no virile nation can afford to leave itself denuded of defensive power and helpless.

THE AFTERMATH

The United States cannot satisfy all the people of the belligerent countries by its neutrality. The people of Europe are so wrought up by the present deplorable conditions that most of them have come to believe that all who are not for them are against them. There is irritation both on the part of the Teutonic allies and the Anglo-French allies because our government has not shown more decided sympathies with one side or the other, and taken a more decisive stand for or against the conflicting contentions. When the war ends there will doubtless be anger against us in all the belligerent countries. Should the war end in anything like a draw, leaving one or more great nations with a veteran and still formidable army and navy, such an army and navy would be more than a match for any force that the United States now has in being. Should one of the nations, thus relieved from peril on its own continent, see fit to call this country to account for some fancied failure in neutral obligation, or to demand from us a large indemnity, the countries formerly at war with it might not see fit to make any intervention in our behalf. They might all say to Uncle Samuel: "You left us to fight our own battles and were not moved to interfere even by the dictates of humanity. Now we will leave you to fight yours!"

It is useless to say that at the end of the war all the countries, and notably England and Germany, will be so exhausted that they will be unable to engage in another great war. History does not so teach. At the end of a long war a country has its forces mobilized and equipped and the military spirit at its height. At the close of our four years' exhausting Civil War, the United States was the most formidable military power in the world, which it is very far from being to-day. It is no time for our people to imitate the ostrich and hide their heads in the sand. There are perils ahead for us whether the war ends soon or late, and however it ends. And besides that, if we desire to promote the world's peace, we must be prepared to speak with a strong voice. Idealistic notions are valuable in their place, but they are about as potent in the storm of war, and the aftermath of a great world-war, as the twittering of sparrows in a storm. If our country lies helpless it will simply be a temptation to some of the now warring nations to recoup themselves from our wealth for their enormous losses.

GERMANY'S MATERIAL ADVANTAGE

Germany enjoys one material advantage in this war, aside from her superior organization, that has so far proved a potent factor in enabling her to maintain her position on all the battle fronts. Germany's normal output of iron and coal is twice that of the British Isles. In addition Germany has, since the early days of the war, controlled the large iron and coal product of Belgium, and four-fifths that of France. It is difficult to exaggerate the importance of iron and coal and iron and coal products in creating and operating the machinery of war. Besides this command of war material, Germany has better command of labor to work the material into war munitions. We do not hear of any labor strikes in Germany. Industrial Germany is as much a unit as military Germany. Of the allies, the British people do not seem to realize what a terrible antagonist they have in Germany. We still hear of British political dissensions and British labor troubles. If the allies expect to win, if the Great Britain expects to preserve the British Empire or even to save the British Isles from invasion and German occupation, then British people will have to drop their internal dissensions, summons all their resources, and fight and work as one man for self-preservation.

THE WILL TO PEACE

In this world-crisis the American people need to search their hearts and determine whether their ideals of peace are based on softness, effeminacy, disinclination to exertion and sacrifice, love of ease and pleasure, or upon absolute principle. In either case, we must arouse ourselves and cast off sloth. Peace is not to be had except with righteousness. The will to peace must be buttressed in strength, and not in weakness. In the present temper of the world, international friendship doesn't seem to count. The nations have lapsed into sheer materialism. Each one is seeking its own aims and interests. Such alliances as exist are made because each member of the alliance believes that its interests will be better served by that combination than by any other. Every one of the lesser states of Europe not already engaged in the war is striving anxiously to determine on which side its bread is buttered—that is whether continued neutrality or active participation on one side or the other will best serve its turn.

The proper policy of the United States is neutrality, but we will gain nothing by toadying to one belligerent or another. Our treatment by the victor in the war, if the war ends in victory for one side or the other, will not be gauged by the friendship we have displayed, or the disappointment which our conduct has occasioned, but by our strength or weakness. We will have to rely upon our own resources and not upon anybody's favor. Our aim as a nation should be, first to preserve our standards of honor and independence. We should truckle to no one. Next, to do absolute justice and to uphold the standard of humanity. We may not be able to prevent any modification of international law or changes in international rules of warfare, in view of vastly changed conditions, but we can insist upon the respect due to us as a great nation.

The United States has a legitimate "place in the sun," and it must maintain that place morally also physically if need be. It is a time of human convulsion when any display of weakness and timidity will invite destruction.

A SLANDER OF BRAVE MEN

The story brought back from Europe by Miss Jane Addams about the “doping” of charging soldiers, naturally amazes all who have had any experience on the firing line. She said in her speech at Carnegie Hall, on July 9th, that in the present war, in order to get soldiers to charge with the bayonet, all nations are forced first to make the men drunk. “In Germany,” she said, “they have a regular formula for it. In England they use rum, and the French resort to absinthe. In other words, therefore, in the terrible bayonet charges they speak of with dread, the men must be doped before they start.”

This outgiving shows the folly of sending an hysterical and credulous woman to the front to get reliable information of war conditions. It is quite probable that the story was told to Miss Addams as she relates it, but that a woman of her intelligence should accept it as true and retail it on her own authority is to be regretted. It gives a misleading picture of war conditions and is an insult to the best manhood of all the nations engaged in the war. Denials have come from all the nations and friends of all the nations, but these denials are hardly needed by those who know about war.

Whatever may be thought of the war, and much as we may deplore its horrors nobody can truthfully deny the courage and hardihood of the men engaged in it, whether they are Germans, English, French or other nationals. It requires just as much courage to endure the wearing danger of the trenches as it does to participate in a bayonet charge. In fact, most soldiers would feel it as a relief to substitute the excitement and activity of an attack for the grinding peril of lying still under fire. If the men would need to be doped to get them to charge, they would need to be constantly doped to endure the sodden and bloody carnage of the trenches.

The work of war requires, more than any other, physical and mental fitness as well as resolution of soul. Every military commander knows that strong liquor would impair the physical strength and endurance of men for the time being, if not permanently. When a line of men start upon a bayonet charge they need every ounce of strength and endurance they possess to give them any chance of success. To send a line of doped men upon a

bayonet charge would be to invite their almost certain destruction and the failure of the movement. Even if commanders were brutal enough to adopt the dope tactics specified by Miss Addams they would not be such fools.

Richard Harding Davis, in commenting on Miss Addams's amazing "revelation," says: "I have seen more of this war and other wars than Miss Addams, and against this insult, flung by a complacent and self-satisfied woman at men who gave their lives for men, I protest."

There is enough material for genuine and truthful indictment of war without resorting to silly falsehood. How would the descendants of the men who gave up their lives in our civil war from a sense of imperious duty and patriotism like to have the slander placed upon their graves that the only way they could be induced to go into battle was to stupify them with intoxicants? Our war was a small one as compared with this twentieth century war, but it was just as perilous to the men engaged in it as this is to the soldiers of the present. An eminent military authority recently published a statement to the effect that in our civil war the casualties, in proportion to the number of men engaged, was ten times greater than the proportional casualties now. We do not know that this estimate is accurate, but we do know that our casualties were proportionately greater, in spite of the superior effectiveness of the modern machinery of war. The science of defense has kept pace with the science of destruction. Our war required just as much courage and hardihood and endurance on the part of the men engaged in it as this war does, and we know that it was not necessary to dope our men with strong liquor, on either side, to get them to fight.

THOMAS A. EDISON DRAFTED

The acceptance by Thomas A. Edison of a position as the head of an advisory defense board of civilian inventors and engineers for a bureau of invention and development which the Navy Department is to create, is an important step in the adoption of a rational national policy. The submarine, the airship and many other of the appliances which have made modern war so terrible and effective are of American origin. American invention and ingenuity have given the world the locomotive engine, the steam boat, the magnetic telegraph, the telephone, the phonograph, the sewing machine, the reaper, the harvester, the steam traction plow, the automobile, and other appliances which have changed the face of modern civilization. American ingenuity has reigned supreme alike in inventions of peace and of war, but our country has not profited to the full from the genius of our inventors. Men of other nations have seized upon American ideas and perfected them to their own profit. This is notably the case with the warlike appliances. The European nations now at war have developed the submarine and the aircraft to the point of astonishing efficiency, while the United States has lagged behind. In case of war, our submarine and aircraft service would, in its present condition of development, be vastly inferior to that of either Germany, England, or France.

The United States either wants to be prepared for war, or it does not. If it does, it wants the best preparation. Mr. Edison has been invited to head the advisory board because of some views in regard to national defenses expressed by him several months ago. He stated at that time that he would establish vast reserve stores of arms and ammunition, and would count rather upon automobiles than upon the railroads for quick transportation. He would also build many aeroplanes and submarines, and would keep our battleships and battle cruisers in dry-dock—practically in storage—but maintained in perfect efficiency, ready for use in case they should be needed for defense. He said he thought an army of 100,000 men, well trained men, backed by an efficient militia, and ample stores of munitions and weapons and other equipment, would be sufficient, but he would also have 40,000 drill sergeants selected and trained to instruct quickly a vast number of soldiers.

This, it will be seen, is a purely defensive military policy. Mr. Edison's ideas may be more or less valuable, but his inventive genius and practical skill are undoubted, and his presence on a board composed of mechanical and scientific experts will furnish an assurance that the best methods to insure the nation's safety from hostile attack will be adopted.

Perseverance is more prevailing than violence and many things which can not be overcome when they are together yield themselves up when taken little by little.

Plutarch.

DR. DILLON ON THE FIRST PHASE OF THE WAR

The following extract from an article by Dr. E. J. Dillon in the June number of the *Contemporary Review* would seem to indicate that England was at last deeply impressed with the formidable character of her foe and the terrible nature of the task before the British people. Dr. Dillon says:

“The first phase of the world-conflict has closed with the bitterness of exploded illusions, the alarming growth of the spectre of destruction, the quick materialization of the danger that threatens the noblest possessions of the human race, and the primary necessity of unanimous sacrifices before that danger can be displaced. Taking stock of the present situation just as this war is about to enter its second phase, we cannot but see that the central fact which calls for recognition is the amazing strength of the German nation. After ten months of warfare against Russia, Britain, France, Belgium and Serbia, it continues not only to live its own life, drawing from its own resources, but is able to send reinforcements of all kinds to Turkey and Austria, to achieve new conquests, plan grandiose operations, and win noteworthy victories over the allies.”

If England had realized the actual and potential strength of Germany from the outset, and made her dispositions accordingly, there might be a different story to tell. France seems to have girded up her loins from the start and to have accomplished wonders with her comparatively limited resources. Russia has made a gallant fight under the handicap of poor preparation and an immobile population. This is a war in which masses do not count against organized and trained efficiency. Great Britain alone has had the requisite resources and has failed to utilize them to the point of the utmost efficiency.

The only hope of the entente powers is in a long drawn out war. If given time, Russia may train her undisciplined hosts. France will make continuous sacrifices. Great Britain may focus her resources and bring them to bear at the point where they are most needed. If the entente allies can continue to hold substantially their present lines for another year, it would seem that Germany must begin to show signs of exhaustion. Any hope the entente allies may have had of invading Germany and crushing it must at the present time seem far from alluring.

A KINDLY VOICE FROM GERMANY

That all Germany is not given over to the doctrine of hate is shown by the following extract from an article by Prof. Ernst von Troeltsch in the *Frankfurter Zeitung*:

“We must not allow hatred to be magnified into theory or a system or let it be the guiding maxim that controls our existence. Hatred may inspire us with courage and driving power, but it is, politically speaking, in the long run, an evil counsellor. It gives rise to a bitter and fantastical idea of politics, which cannot be pursued, and therefore brings dangerous disappointment in its train. And in its influence on our moral and spiritual life hatred is most dangerous. Everyone is agreed that we need a deepening of our moral and spiritual sense, and hopes to see a new Germany rise out of the unparalleled sacrifices which we have made. This new Germany is not to be a compound of hate, but to spring from the creation of new sources of national strength. All her past whether it be based on Christian and Conservative ideas or on Liberal ideals, protests against race hatred, and all these theories which base the conduct of real politics on hate—theories which are not born in the field, but at the writing-desk, whose standard-bearers are not soldiers, but the self-important Philistine, and the bombastic writer at home.... We do not need to cultivate hate, but to deepen our insight into the terrible seriousness of the moment, and this all-important hour of our fate.”

If Prof. Troeltsch represents any considerable body of German sentiment the note he sounds is an encouraging one. Every country has its yellow journals, its pot-house strategists, and its writing-desk statesmen, who are fond of elaborating pompous theories and showing their bravery by delivering hard words instead of hard knocks. Perhaps a good deal of the quoted literature that comes out of Germany voicing hated and arrogant purpose of world-domination originates with the bombastic Philistines described by the Professor, and not from the real representative men of the nation. If so, when peace comes to be seriously discussed it may be possible to agree upon terms that will not be repugnant to our Christian civilization.

WAR, BUT NOT FAMINE

In allegory and history war is usually associated with famine. But fortunately in this otherwise awful conflict there is so far no general famine. There are of course sporadic instances of local suffering from lack of food in war-devasted regions, but the belligerent nations, as entities, seem to have ample supplies. It is officially declared that Germany has ample stores of food, and that the promise of the current year's harvest is bounteous. It is the same with Austria and Russia. France and England have ample food from homegrown products and importations. The outlook is for enormous crop yields in both the United States and Canada. There seems to be ample ability in the warring countries to take care of the harvests by the labor of the men not at the front, supplemented by the labor of prisoners of war and of the women and children. The setting of prisoners of war to work in the fields is not inhuman. On the contrary, it is very often a mercy to the prisoners.

Pestilence also is the usual accompaniment of war. There are reports of pestilence from various quarters, but modern science has shown itself able to battle with disease and prevent any widespread devastation from it.

STRIKES IN WAR TIME

Reports of an impending strike in the Krupp works of Germany were followed by reports of the probable universal application of martial law. It is not probable that any serious strike will be allowed in Germany. No nation at war can afford to permit extensive strikes on the part of its industrial population. It is not improbable that Great Britain will be obliged to follow the example of Germany in suppressing strikes with the strong hand. When a nation is fighting for its life it cannot permit any class or section of its people to imperil the independence of the country and the safety of its population by pursuing a selfish class interest to the point of paralyzing a vital industry.

AN INTERESTING FORECAST

General and former Judge Roger A. Pryor, who commanded a Confederate brigade during the Civil War, recently indulged in some war predictions after premising that “it is foolish to prophecy.” He expected the fall of Warsaw, and then that the Germans would conclude a separate peace with Russia. France would come next for the same treatment. Then England would be left to face things. Judge Pryor added:

“Is England an old empire that has reached the stage that ended the history of Greece and Rome? Perhaps not. Perhaps it is not destined to go yet, and at the hands of Germany.

“But whatever happens, I think the end of this thing they call militarism will come. Whoever triumphs, the people, even of the victorious country, will demand that the nations’ means be devoted to humanity rather than war. The people are paying for this war. They are losing most, and they know it.

“As an old soldier, I can say there is nothing in war. I have seen enough of it. The world is not at a stage now where constant killing of men by their fellows can go on. This war will be the great lesson.”

Whether Judge Pryor’s forecast as to the military outcome is credible or incredible, his prediction of the downfall of militarism is within the bounds of probability. His verdict that there is nothing in war jibes with the verdict of General Grant and many great soldiers.

PRESIDENT WILSON'S LAST GERMAN NOTE

The note to Germany from the Department of State of the United States, under date of July 21, 1915, and signed "Lansing," is gratifying to the American people by reason of its firm tone, its manly assertion of our national dignity, and our purpose to protect American citizens, as well as the rights of humanity, upon the seas. It is not belligerent in expression, but on the contrary most moderate and courteous. It leaves the way open for a friendly adjustment, but appears to be a finality so far as correspondence is concerned. Germany can meet our demands by refraining from the acts of which our government complains, and our claims for redress and indemnity for past acts can be left for future adjustment.

Fortunately, there is not now in the cabinet a Secretary of State to nullify the moral and practical effect of the note by secret assurances that it is "intended only for home consumption."

“PEACE BY COMPULSION”

In the August issue of this magazine there was a reference in this department to a communication from the Hon. James Brown Scott on “Peace by Compulsion.” The communication to which reference was made was, through some mistake in the make-up, omitted from the pages of the August number. The substance of it will be found in this number. Mr. Scott sets forth some of the weaknesses and inconsistencies of the plan proposed by the Philadelphia League of Peace meeting.

THE RED SEA

BY
FRANCIS BOWLER PRATT

A sea of blood is rising and beating at the Wall
Of Peace, that threatens sorely, with each new tide to fall.
Upon its crimson surface (O God! the fearful cost)!
Like floatage from a shipwreck, humanity is lost.
Dashed to a doom relentless, worn age and noble youth,
Cast at Thy feet, all broken, are at the sea's grim ruth.
God of the slain and slayer, the craven and the brave,
The scarlet waters, corpse-strewn, Thy very throne must lave
If Thou stay not the flood-tide ('tis brimmed with women's tears.)
Cup in Thy hand this Red Sea, and calm men's dread and fears;
Dread of the devastation wrought by a bitter war.
Fear for its flower, and promise fed to a greedy maw.
Lord, dry the springs of hatred and check this stream of death.
Man's burning lust of power quench with Thy potent breath.
Wielder of mighty waters, ward of the tiny stream;
Source of the sun's effulgence and of the moon's pale beam;
God of the sheltered seedling and the surrendered grain,
Grant that to realms war-deluged Thy Kingdom Come again.

EDITORIALS

NATIONS STILL IN THE CAVEMAN ERA

While international law has by agreement laid down certain rules regarding the conduct of war, it is recognized that there exists no central authority that is able to enforce compliance with these arguments. But, as regards the right of a nation to declare war for any reason, even for openly alleged plunder and conquest, there is no precept of restraint and no recognized right of interference. Although the right to invade, subdue and appropriate without provocation cannot be established as a right to inherit in any sovereign state by any process of juridical reasoning, nevertheless it is a recognized prerogative which international law does not, and under existing conceptions of sovereignty cannot, forbid. One of the greatest authorities on the subject says: "Theoretically, international law ought to determine the causes for which war can be justly undertaken—in other words, it ought to mark out as plainly as municipal law what constitutes a wrong for which a remedy may be sought in law. It might also not unreasonably go on to discourage the commission of wrongs by investigating a state seeking redress with special rights, and by subjecting a wrong-doer to special disabilities." But in fact it does nothing of the kind. International law accepts war, independently of the justice of its origin, as a relation which the parties to it may set up if they choose, and which any nation may, if it chooses, impose upon another against its will. The law confines itself to nominally regulating the effects of the relations.—Dr. David Jayne Hill in *Review of Reviews*.

The above declaration from a well known authority upon international law shows how unsatisfactory is the present status of the recognized law of nations, and how inadequate, not to say impotent, it is to preserve the peace among nations. We glean from other authoritative writers on the subject that the Moral Law which is almost universally held to be binding upon the individuals of a nation with respect to internal affairs must, in the case of the nation as a whole, give way to the necessity of self-preservation, and that under this rule everything deemed necessary to the preservation of the life of the nation is justified. Dr. Hill remarks that even the control of international law upon the conduct of war is wholly illusory, as is evident from the fact that the so-called laws of war cannot be enforced by a non-belligerent co-signatory of the convention in which the agreement is made without the non-belligerent itself going to war to execute such enforcement.

Therefore the nations of the world, regarded as individual entities, are in precisely the same relation to each other as were the individual cave-men of the prehistoric era. Each cave-man was a law unto himself and existed by virtue of his strength and cunning. If one cave-man made a compact with another to unite for mutual defense there was no outside power to make either one keep the agreement save by compulsion, or to respect the life and

property of friend or enemy. There was no moral law among the cave-men, and there is at present no enforceable law among nations.

The plan of a World Court for Judicial Settlement proposes to introduce among nations enforceable international laws which would tend to prevent war altogether by compelling nations to live up to the recognized rules of international morality. It would do for nations what civilized institutions have done for the individuals of nations.

THE WAR PATH OR THE WORLD STATE

This is the key-note of a powerful article by H. G. Wells, in a recent issue of the *New York Times*. His argument, is that “Man’s increasing power of destruction, unchecked will overwhelm Hope, Beauty and Freedom in the World.”

The submarine and the aircraft have made the horrors of war inescapable by the civil population of any country. The development of destructive weapons during the present war has been marvellous. It seems inevitable that capacity for offense will be so developed in time that no ship will be safe from torpedoes on ocean, river or lake, and that no city or hamlet, or even remote farmhouse, will be exempt from destruction by aërial bombs. What is to prevent a fleet of enemy’s aircraft from burning up the crops of any given region, condemning the inhabitants to starvation? This thought can be expanded ad libitum by those who keep pace with the march of invention, and who realize that just now destructive invention outpaces constructive invention and the science of conservation.

The old scope of war was sufficiently horrible, when it mainly threatened fortresses, battle-fields and men liable to military service. But now its threat is universal, against whole populations, on land and water.

Therefore the question of universal peace is now of vital interest not alone to the statesman, the ruler, the general and the financier, but to “the man in the street,” to the ordinary citizen, to every woman, and to every little child. It always concerned all these in a general way, but now it is brought intimately home to all, because war can at any moment put any individual in imminent personal deadly peril of life or limb.

Is there a possibility of preventing wars in the future short of the adoption of a counsel of perfection—that is to say, the substantial regeneration of human nature to the moral elevation of the mind that was in the Prince of Peace? There is manifestly only one way to approximate universal peace among men so long as they remain in an unregenerate state. And that is a union or welding of nations into what might be called a World-State.

The model is the nation itself. Internal peace is preserved in a civilized and virile nation by the establishment of constitutional safeguards and of

institutions of government. Not all the individuals of a nation can be trusted to keep the peace. The non-peaceable are held in check by laws and by the provisions made for the execution of the laws. To this end nations have legislative bodies, executives and courts. The executives have placed under their command armies and police forces to restrain the wicked. With all the machinery of executives and courts and police forces crime is not entirely prevented, nor violence suppressed. People are assaulted and murdered, but in a well-ordered nation the infractions of the law are trifling as compared with the aggregate of peaceful life.

So in a World-State. War and violence might not be entirely prevented, but the aggregate of peaceful life would be so extended as to save civilization and permit moral and material progress. Mr. Wells well says:

The course of human history is downward and very dark indeed unless our race can give mind and will, now unreservedly in unprecedented abundance, to the stern necessities that follow logically from the aircraft bomb and the poison gas and that silent, invisible, unattainable murderer, the submarine.

The way to achieve a World-State was clearly pointed out by the Cleveland World Court Congress. It is doubtful if any other method is workable than to begin with the establishment of a World Supreme Court for Judicial Settlement backed by ample physical force to curb unruly nations. No one contends that such a tribunal can be made effective without the coöperation of the first class powers, or a decisive majority of them. The task of the United States, after the conclusion of the present bloody war, will be to bring these great nations together in a world-conference to perfect the plan for a World-State.

CHINA AND JAPAN

“Japan has seized this time, when the European powers are engaged in a hand-to-hand struggle for existence, to begin the work of the consolidation of the yellow races. Japanese statesmen have explained her position as that of mediator between the West and the East. Japan does not desire to be the mediator between the West and the East. She wants to be the East.”

This is the conclusion reached by Samuel G Blythe, in a recent magazine article discussing the demands made by Japan upon China on the 18th of January last. The original demands were somewhat modified before acceptance by China, but in their modified form they virtually give Japan the hegemony of China. China accepted under a tacit threat of war, because China was militarily too weak to resist Japan, and because China knew that she could not look for help at this juncture either from Great Britain or the United States. The British Empire is engaged in a struggle for its own existence: The United States, in a military sense, is almost as weak as China, and faces too many possibilities of complications with some or all of the European powers to make it safe to allow its attention to be diverted by the possibility of war with Japan.

There is no reason to believe that Japan has any aggressive designs upon the United States. In fact, the execution of her design of becoming, as Mr. Blythe expresses it, “The East,” bids fair to occupy her attention to such an extent as to preclude the idea of Japan seeking trouble with this country. But that Japan would stand on the defensive and resist with her full military power any attempt on our part to intervene in behalf of China, goes without saying. If we have war with Japan we shall have to carry the war to Japan, and that, in the present condition of world affairs, is unthinkable.

In the present cynical attitude of the white and so-called Christian nations toward each other, it is not surprising that a heathen nation like Japan should resolve to take advantage of her superior physical strength to push her own interests. She claims to be a civilized nation, and so do Christian nations engaged in the great European war claim to be civilized. But their civilization is not allowed to stand in the way of their ambitions. It is natural that Japan should aspire to be the controlling power of Asia. She is

the only Asiatic power that is fit for such a task or that could hope to accomplish such a design.

For Japan to hold her hand now and restrain her ambition when the folly of the great European nations has offered her an opportunity which may never occur again, would be an act of extreme self-abnegation even on the part of a Christian. Can we expect a higher standard of world-ethics from a heathen? Looking the situation squarely in the face, we may expect to see Japan set her foot upon the neck of China and subdue that country politically and economically to her will, for China has no power of organized resistance. We may then expect to see Japan set up a sort of Monroe Doctrine of Asia. She will undoubtedly allow Great Britain to retain India, as Great Britain is already established there, just as we allow Great Britain to retain Canada—but Japan will say to Europe and America, “Hands off!” as to new acquisitions in Asia. She will probably not attempt to interfere with the United States in the Philippines, but if we should make up our minds to abandon the Philippines, Japan might extend her protection over the Filipino Republic to prevent it coming under the influence of any other great power.

As for China, there is reason to believe that Japan’s protectorate over it, or absorption of it, will be beneficial to the people of that country in many ways. The Chinese have shown no capacity for organization or self-government. They have shown no capacity to develop the magnificent resources of their vast territory. Under Japanese efficiency China will be developed, and Japan, occupied in this task of development, will have no time to meddle with American affairs or to seek to push any colonizing enterprise on the American continents. The passing of Asia under the virtual suzerainty of an Asiatic power that has displayed a capacity for civilization and modern progress may be one of the compensations of the great world war. As for American trade in the aggregate, it should be helped rather than injured by the awakening of the sleeping Celestial giant to the touch of Progress.

ENGLAND AND THE DISINHERITED

The present war may prove a blessing in disguise to England if it leads to social reorganization on a more rational and effective basis. The weakness of England, as developed during the past year, has been in lack of unity and organization. There has been not only too much political, but too much class division. The remark has frequently been made, "Why doesn't England wake up?" There has not been the same effective coöperation among all classes that has been apparent in Germany and in France. The English government has been in times past careless or neglectful in allowing the development of slums and of a "submerged tenth," while what are called the upper classes have been too intent on the pursuit of pleasure to give due heed to the privation and suffering of those occupying a lower social scale. This is measurably true of society in all countries, but it is notorious that the "upper classes" in England have been zealously devoted to sports, week-end holidays, social functions and the pursuit of gain, while the operative classes have antagonized them in labor organizations, and the lower working classes have been neglected and thrown upon the poor rates. This has bred social divisions which even the pressure of war finds difficult to heal. If this war is fought through to success by the working people of England, as it must be if England is successful, because the working people furnish the bulk of the army and navy and the toilers in the factories, they will undoubtedly demand a rearrangement of social forces which will give them a more equitable participation in the prosperity of the country. German efficiency teaches the world that no nation can permit the growth within its boundaries of a proletariat that feels itself disinherited.

ACTION VERSUS WORDS

There are many who think that the proper reply to the sinking of the *Lusitania* and the taking of American lives without warning would have been the calling of Congress in extra session and the appropriation of a billion dollars or more for increasing the American army and navy and coast defenses. They argue that this would not have been a measure of war, but on the contrary a measure of peace, as it would have shown that this country meant to protect its citizens and that no nation would ever venture to attack us if they saw that we meant to be prepared. The military authorities say that it will take us several years to place ourselves in a condition to fight any one of the first-class European powers with any prospect of success. Orville Wright says that we need two thousand æroplanes which might be built in a year, and Mr. Lake says we need at least a hundred and fifty submarines, which might be built within two years, and a goodly proportion of them in one year. If we need to prepare for defense, and the preparation takes so long, the sooner we begin the better. As actions speak louder than words, President Wilson's action in calling Congress together would have conveyed a distinct impression of our resolution to protect our nationals and our national interests, as well against Great Britain as against Germany, which no "note" can convey, especially when the force of the note is undermined by a cabinet officer with the secret assurance to the ambassador of a foreign power that the note was merely for home consumption! Fortunately, however, for the credit of President Wilson's administration, his cabinet is now purged of such secret folly and treachery.

THE DUTY OF THE HOUR

The view taken by the more sober and serious advocates of stronger armament by the United States is expressed by the publication, *The Army and Navy Journal*, in a recent issue, under the caption, "The Duty of the Hour." It says:

"Is there no possibility of bringing home to official diligence an apprehension of the fact that preparation for defence, so far from involving us in war, is the best defense against war, as is shown by little Switzerland holding calmly on its path of peace in the midst of warring nations? All the powers respect the neutrality of Switzerland because they know that she is prepared to fight for her independence to the last man, and that she is at all times ready for immediate action in defense of her mountain fastnesses, so that she is a power to be reckoned with."

Switzerland is a poor country and does not greatly tempt any of the belligerent nations by her wealth. The Swiss are tough fighters, their country, by reason of its mountainous situation, is a very defensible one, and its subjugation would undoubtedly cost any power more than the conquest would be worth. The case is very different with the United States. This is the richest country in the world, actually and potentially. Any power which could occupy its coast cities would be able to levy indemnities which would richly pay them for the financial cost of any war. Human nature being what it is, such wealth is a constant temptation to any predatory power. The ocean does not protect us as it formerly did, but on the contrary affords a convenient highway for invasion. Such wealth as ours needs protection in the present status of world-morality. There is no thought of aggression on the part of our people. The United States will never arm for aggression. But it should be strong enough to keep its goods in peace and to save its population from the horrors of invasion.

THE ARISTOCRACY OF LABOR

William James's essay on the moral equivalents of war advocated conscription for peace of all youths, rich or poor, to do the hard, rough and disagreeable work—the labor of the mills, the coal, iron and other mines, the work of railroad building and transportation, to man the fishing fleets in December and the harvest fields in August, the digging of tunnels and foundations, the erection of the frames of skyscrapers, and the varied work of land reclamation and cultivation. This of course would have to be done under a system of State Socialism, as everybody is naturally looking for the easier jobs. But the plan would hardly work under the present system of individualism and freedom of choice in occupation and the pursuit of happiness. But one thing the State might do, in organizing its educational facilities, is to give more attention to and provide more facilities for a vocational education. There is a surplus in all communities of clerical labor and of people who are seeking to do what they call brainwork, rather than muscle work. But the need of the world is for strong muscle workers, for manual skill combined with intelligence. Our schools afford ample facilities for the acquirement of book education, and the importance of book education has been so magnified that the lighter tasks have come to be extensively regarded as in some way more genteel than the harder ones. Sentiment, however, is changing, as is shown by the fact that skilled mechanics as a rule command better pay and steadier employment than the mere clerical workers. Applied science and skill have come to occupy so important a place in our modern social life that the skilled manual worker is now the real aristocrat among workers. This trend in the distribution of tasks will do away with the need of drafting men for the hard work. The higher pay and the higher honor of such work will steadily draw the superior brawn and brain of our youth into what may be aptly called the manlier occupations.

THE UNCERTAINTY OF FUTURE EVENTS

The fact is recalled that Dr. David Starr Jordan, one of the most prominent of the pacifists who decry armament and preparedness, said in an article on "War and Waste," published in 1913: "What shall we say of the Great War of Europe ever threatening, ever impending, and which never comes? We shall say that it will never come. Humanly speaking, it is impossible."

Prophecy, by a mere mortal, is always exceedingly dangerous. We all hope, and we may firmly believe, that the United States will never be compelled to engage in another war, but to make a definite prediction that war will never come to us would be folly.

If war is ever to come, the question for this country to solve is, whether we shall prepare to meet it before it comes, or after it comes. Hudson Maxim, who has recently issued a large book to argue for preparedness, is seemingly quite hopeless that his advice will be taken. He says:

"Pacifism has ringed the nose of the American people and is leading them, blind and unknowing, to the slaughter. War is inevitable. It matters not that if this country could be roused, it might be saved. When it is impossible to vitalize the impulse necessary to the accomplishment of a thing, that thing is impossible. So I say, war is inevitable and imminent. The American people could not now be roused sufficiently to avert the impending calamity even by a call that would rift the sky and shake down the stars from heaven! Fate has decreed that our pride shall be humbled, and that we shall be bowed to the dirt. We must first put on sackcloth, ashed in the embers of our burning homes. Perhaps, when we build anew on the fire-blackened desolation, our mood may be receptive of the knowledge that we must shield our homes with blood and brawn and iron."

Let us hope that this dismal prophecy will not be fulfilled. Let us hope that it is as wide of the mark as was Dr. Jordan's prophecy that there would never be another great war in Europe. Yet if one is to play the prophet, it is better to prophecy evil things that put us on our guard, than smooth things that cause us to run heedlessly into danger.

Winston Churchill, the young English statesman, once began to raise a mustache, and while it was still in the budding stage he was asked at a dinner party to take out to dinner an English girl who had decided opposing political views.

"I am sorry," said Mr. Churchill, "we can not agree on politics."

“No, we can’t,” rejoined the girl, “for to be frank with you I like your politics about as little as I do your mustache.”

“Well,” replied Mr. Churchill, “remember that you are not really likely to come into contact with either.”

After his first lecturing tour in this country Matthew Arnold visited old Mrs. Proctor, the widow of the poet Barry Cornwall, and mother of Adelaide Proctor. Mrs. Proctor, giving Mr. Arnold a cup of tea, asked him, “And what did they say about you in America?” “Well,” said the literary autocrat, “they said I was conceited, and they said my clothes did not fit me.” “Well, now,” said the old lady, “I think they were mistaken as to the clothes.”

WHAT MISTAH TROUBLE DID

Ol' Mistah Trouble, he come aroun' one day
An' say, "I gwinter git you, so you better run away
I likes to see you hustle. Dat's de way I has my fun.
I knows I kin ketch up to you, no matter how you run!"

I says, "Mistah Trouble, you has been a-chasing me
Ever since I kin remember, an' I'se tired as I kin be.
So I'se gwinter stop right yere, an' turn aroun' a-facin' you,
An' lick you if I kin, an' fin' out jest what you kin do."

Ol' Mistah Trouble, he looked mightily ashamed;
He acted like a buckin'-hoss dat's suddenly been tamed;
An' den he turned an' travelled off, a-hollerin', "Good day;
I ain't got time to fool around wif folks dat acts dat way."

Washington Star.

THE WORLD COURT MOVEMENT

BY
HON. THEODORE MARBURG

The World Court idea is not new. It has been the thought of eminent men—scholars, churchmen, publicists, occasionally statesmen—at intervals for generations. Our own William Penn put forward in 1693 a plan to prevent wars. In 1795 the famous German philosopher, Immanuel Kant, published his essay on “Perpetual Peace,” a fundamental conception in which was that wars would not cease until all the governments of the world were democratic. The great English lawyer, Jeremy Bentham, whose speculations fertilized so many departments of law and social endeavor, likewise elaborated a plan. Other men at other times, before and since these, have turned their thoughts to this subject. In our own country we have had men such as Elihu Burritt (1810–79) and Charles Sumner (1811–74) who have influenced, not only the people of America, but of the whole world. The first peace society was formed in New York, 1815, followed by one in England the ensuing year. It was Burritt who organized the Brussels Congress of Friends of Peace in 1848 and this was followed by the important gatherings in Paris, Frankfurt, London, Manchester, and Edinburgh. The great congress in Paris (1849) was presided over by Victor Hugo. Then there burst upon the world a series of wars, beginning with the Crimean War and the war in Italy, followed by the Austro-Prussian War and the Franco-Prussian War, and the peace movement was stilled for a full generation. Presently, there came renewed interest. Men began to examine the records of peaceful settlement of disputes; they found hundreds of instances of successful arbitration, our country—direction having been given to it by the Jay Treaty—being distinctly a leader in this field. They

found that the awards of the arbitral tribunals were uniformly respected, that it was not necessary to use force to execute the verdict.

It has been suggested that possibly one explanation of this fact is that the more acute questions, over which there was great popular feeling, were not submitted to arbitration. However this may be, the fact is that we had an unbroken record of the acceptance of the verdict of arbitral tribunals until within the last few years. The apparent exception in this record is the arbitration over the Canadian boundary between Great Britain and the United States. It was found that the arbitrator, the King of the Netherlands, had exceeded the terms of the “compromise”—the agreement under which the arbitration was submitted—and the award was set aside by mutual agreement of the two countries, so that this case can not really be looked upon as a refusal by the loser to accept the award.

Within the past few years we have seen arbitrations thrown down by three South American and Central American countries. I do not feel that this, either, is very significant, because of the character of the countries which brought about this break in the long and splendid record. Owing either to their undeveloped condition or to the nature of the people, or both, these countries are frequently unable to maintain law and order within their own borders and are at times either unwilling or unable to carry out the verdicts of an international tribunal. It would therefore seem unfair to let a valuable principle suffer because it has been disregarded by a people whose backward condition makes it unlikely in advance that they will prove equal to the task of living up to it.

From this general criticism of the Latin-American countries must be excepted what are known as the “ABC” countries. Two of them, Argentina and Chile, enjoy a stable government. The stability of the other, Brazil, is less certain but still sufficient to place it among the progressive Powers of the world. This term, progressive Powers, I shall have occasion to use later and therefore should like to define it now. It is a mistake to follow the common disposition of the times and measure progress in terms of numbers—growth of population, pounds of steel, or yards of cotton turned out. Progress is to be sought in things other than the material, in the growth of the ethical, intellectual, and spiritual forces, above all, in justice: social justice, the justice of man to man, justice of employer to employe, justice of

the State towards its people, justice written in the law, and justice of nation to nation.

Now, this recognition of the success of arbitration, combined with a realization of the unintelligent methods by which countries regulate their relations with each other, and above all the waste and danger of competition in armaments, led to the call for an international conference which met at The Hague in 1900. No progress whatever was made at the conference on the question of disarmament, for which primarily the conference was called. But there did emerge from it new institutions which were not looked for but which were a real gain to the world. I refer first of all to the Permanent Court of Arbitration, which you will remember has decided several difficult questions, among them the Casa Blanca affair between France and Germany, at one time quite acute. There emerged also an international Commission of Inquiry, which, in 1904, proved of the highest value. You will remember that the Russian Admiral Rodjesvensky, emerging from the Baltic, thought that he discovered an enemy in some innocent English fishermen. He attacked them sank a ship and killed several men. Now, in the minds of many men that incident might have led to war the next day—a generation before it would undoubtedly have led to war. But there happened to have been set up by the First Hague Conference this institution, the Commission of Inquiry. The question was referred to it and it was found that Rodjesvensky, however foolishly, still honestly believed he saw in these fishermen Japanese warships. Moreover time was given for national passion to subside. As a result there was no war between Russia and England and in the opinion of statesmen of the day, the fact that there was no war was due largely to the existence of this institution.

Then, too, at the First Hague Conference, Good Offices and Mediation were recognized for the first time as friendly functions. It was agreed that if a country should offer its good offices to two countries on the verge of war, or at war, this act should not be regarded as unwarranted interference but as a friendly act. It was under that institution, you will remember, that Mr. Roosevelt succeeded in bringing Japan and Russia together at Portsmouth and so terminating, earlier than would otherwise have been the case, the Russo-Japanese War. A second peace conference took place at The Hague in 1907. The task of improving the rules of war which had been begun at the First Conference was carried forward at the Second Conference. The Second Congress, moreover, adopted in fact an institution known as the

International Court of Prize. Then it adopted in principle the Court of Arbitral Justice, intended to be a true international court of justice, composed of judges by profession, whose tenure should be permanent. This latter institution was to be brought into being through diplomatic channels as soon as the nations should agree upon the method of selecting the judges. The reason the court is not in existence to-day is that up to this time such a method of selecting the judges has not been found, and this is one of the subjects up for discussion this afternoon.

Now, why did the Second Hague Conference vote for this Court of Arbitral Justice when we already had in existence working successfully, the Permanent Court of Arbitration set up by the First Hague Conference? The reasons were several. In the first place, the Permanent Court of Arbitration was not a court of law. Its decisions were to be based upon the principles of law but at the same time its functions were those of arbitration, and, as you know, the main object of the arbitrator is to bring about the settlement of a dispute. That is to say, he is more interested in that, which often involves compromise, than he is in bringing out the true justice of the case which would tend to develop the principles of law and enlarge accepted practice.

Now, those of us who believe in this true court of justice for the world feel that international law would be built up by it in two ways. First, it would grow through the decisions of the judges themselves in cases actually coming before them, the judge being governed by previous decisions of the Court—the way in which the great Common Law of England has grown. That process produces the most natural, healthy, sound, and permanent kind of law. Then it is felt that the existence of this court will invite the codification of certain spheres of law. An example in point is the way in which the provision for the International Court of Prize led to the London Conference of 1908–1909, at which the law of prize was codified. England declined to proceed with the project of the International Prize Court until that was done. Hitherto the law of prize has depended upon the interpretation each nation has placed upon it. One nation might set up as contraband that which another nation declined to accept as contraband. Questions of how long an enemy's ship should be suffered to remain in a neutral port, whether merchantmen may lawfully be converted into armed cruisers after leaving home waters, and numerous similar questions, were differently answered by different countries. England said “we must know what we are undertaking.” Therefore, at her instance the conference met at

London and evolved the London Convention which codifies the law of prize. When the present war began, Germany announced her willingness to accept the Convention. On the other hand, England, who had not yet ratified the Convention (owing to the opposition of the Lords), proceeded to modify it and proclaimed it in this modified form. France did the same. It was accepted in its original form by the United States Senate but not promulgated by the President, who took the position that the United States could not accept a convention in which several nations had introduced their own amendments not agreed to by all. But the history of the London Convention shows how the existence of an international court will invite the codification of certain spheres of international law. I use that term advisedly because it is a tremendous undertaking to codify the whole body of international law, nor is it certain that it is advisable so to do. It may become too rigid.

Now, that project of the Second Hague Conference, the Court of Arbitral Justice, was accepted by the forty-four nations participating in the conference. It was indorsed in 1912 by the Institute of International Law. It has been supported earnestly by all the Powers, including Germany, France, and England; and every lawyer, every man who feels what justice means, approves of it. There is no difference of opinion as to the desirability of putting it into effect. The name of the proposed court, the Court of Arbitral Justice, is misleading. The word "arbitral" does not belong there. It was put in because Germany insisted on its being there. The word "court" carries with it the idea of obligation. When a court in municipal law renders a decision, usually an obligation goes with it. Now, Germany was not ready for anything obligatory in international institutions; therefore her demand. But a true court of justice is none the less provided for by the convention. From time to time for generations, isolated individuals have put forward the idea of such a court. The present movement to create it was really born in the mind of a man who sits upon this platform, James Brown Scott. He was connected with the Department of State under Mr. Root, and, as Mr. Root himself expressed it, he talked with Mr. Root once too often about this court. The result was that the American delegation to the Second Hague Conference went there with instructions from Mr. Root to establish the court if possible. Mr. Scott took an active part in drawing up the convention relating to the court and has been an earnest worker in the cause ever since.

He has gotten a lot of us interested in it and may be said to be the father of the modern project.

In 1910 we formed a society known as the American Society for Judicial Settlement of International Disputes to promote this court.

The society has had four annual meetings, the proceedings of which have appeared in four substantial volumes. Besides, it publishes a quarterly usually limited to one article on the subject by some prominent man. The Proceedings have been translated, have been liberally quoted by foreign publicists, and have made a profound impression upon public opinion not only here but in other countries. The distinguished Foreign Minister of The Netherlands, Jonkheer Loudon, said we had demonstrated the feasibility and the necessity for this world court.

The Proceedings and the papers in the Quarterly published by the society have been of a scientific character designed to examine the project and to expose the principles which should guide the founders of the court and govern the court itself when established. But Mr. John Hays Hammond, an ex-president of the society, was not satisfied that this project should remain in the academic stage. He conceived the idea, with Dr. John Wesley Hill, of a public propaganda in the United States in favor of it. We have had several meetings in the West, a very large one in Akron, and a number in the East, all of which culminated in The World Court Congress held May 12, 1915, in Cleveland, Ohio.

Now, conjointly with this project there is in the minds of many of us a desire to have the world go a step farther and introduce the element of obligation.

Mr. Hamilton Holt is one of the principal advocates of this latter idea, which is nothing less than a league of peace. The subject was put forward by him in September in *The Independent*. Then he came to me with the suggestion that we should have a public conference. We first got together a group of about twenty scientific men, professors of political science, of international law, of history, of economics, threw the subject into the arena and had it torn to pieces by them at three meetings held at the Century Club in New York. In this way was worked out what we regarded as a "desirable" plan. We then took this "desirable" plan and on April ninth, laid it before men of wide practical experience, including Mr. Taft and Mr. A. Lawrence Lowell, in order to ascertain how much of it was, in their opinion, a

“realizable” project. It was found that they were not ready to accept as realizable the whole of the plan of the first group, which was practically this: a league of peace which shall bind its members to resort to a tribunal for the settlement of all disputes to which a member of the league may be a party, and obligate them to use force, if necessary, both, to bring the nation law-breaker into court and to execute the verdict of the court.

Now, when you introduce the element of force into your plan you find that the unanimity of opinion to which I have referred as applying to the Court of Arbitral Justice as at present proposed, and to similar purely voluntary institutions, no longer exists; that there is very great diversity of opinion as to whether force should be used against a nation under any circumstances. The reason for this diversity of opinion is the shortcomings of the leagues of the past. The Quadruple Alliance, the Grand Alliance, and the Holy Alliance, all formed immediately after the Napoleonic wars, were by no means wholly beneficial. The Holy Alliance set up between Prussia, Russia, and Austria in 1815, ostensibly to promote Christianity, but really to support dynasties and combat the democratic tendency of the times, operated in fact to suppress liberty in Hungary, in Italy, and in Spain. You will remember that it was the Holy Alliance acting through France as a mandatory which overthrew the liberal form of government in Spain and restored full autocratic powers to the king. Then there were the partial successes and many failures of the Concert of Europe. The Concert of Europe has done some good things. It smashed the Turkish fleet in 1827 and liberated Greece. It has prevented more than one Balkan war. It has improved the lot of the Armenians in Turkey. But it has had many failures, this present disastrous war the most conspicuous of them. Then there were these groups like the Triple Alliance and the Triple Entente, which, though set up for purposes of peace, have really given to the present war its broad character. All of us felt that owing to their existence, when war came again to Europe it must be a general war. The breaking out of war surprised many people; its extent surprised no one.

Manifestly, then, the first step in planning a league of peace is to find out why the leagues of the past have failed. I think the answer lies in one thing: the narrowness of the group composing the league, permitting of the triumph of selfish interests, permitting of collusion, the swapping of favors, and resulting in injustice and oppression. That is what men fear.

Now, many of us believe that if we can set up a league so broad as to include all the progressive nations, big and little, it will be permanent and successful. I have defined what I mean by the word progressive. Such a league would include the eight great nations of the world, among them the United States and Japan. It would include the secondary Powers of Europe—Switzerland, Norway and Sweden, Denmark, Belgium, such as it was and such as it will be again, Spain, Greece, and in fact, all the countries of Europe, with the possible exception of some of the Balkan States and the certain exception of Turkey. The “ABC” countries of South America would also be included. It would not include the backward countries, because we feel that the country which can not maintain law and order within its own borders would bring no strength to the league.

Now, we believe that such a group would be successful. In the first place, it would embrace three great nations with common political ideals—England, France, and the United States. I put our country last for reasons of politeness only. These three peoples feel that democratic government is no longer a passing phase of political experiment but a permanent fact in politics. Therefore they would cling together. Then you have in the group two great nations—Great Britain and the United States—who may be said to be satisfied territorially; you have the secondary Powers of Europe who have no disturbing ambitions and whose voice would be for reason and justice, so that we think that if we could get these states associated together in a league, substantial justice would emerge, just as substantial justice results from the united action of the forty-eight states composing the American Union.

Whether you believe this league is practical or not depends on your answer to that question: whether justice would emerge from its united action. Unless it does justice it can not endure. Unless it does justice we don’t want it: we don’t want oppression. Injustice within a country—persistent injustice—sooner or later brings war; if not civil war then foreign war, or both; just as gross injustice in the conduct of a war will draw into the struggle an ever widening circle of nations, because there are irresistible forces which insist that justice shall emerge finally in the world.

Now, it was not proposed that this league should itself pass upon disputes. All it would do is to insist that members, party to the league, or any nation having a dispute with a member of the league shall not resort to

war. It may refer the disputants to existing institutions at The Hague or to other institutions to be hereafter set up. They shall be privileged to go on with their dispute indefinitely if they choose, but they may not resort to war. The United States, under this plan, would have been permitted to continue the Fisheries dispute with Great Britain, as it did, for three-quarters of a century without interference; but if either Great Britain or the United States had shown a disposition to resort to arms the league would have been invoked and would have used its combined forces to prevent aggression.

There are four ideas or stages in the conception. The first is simply a true court of justice to which nations may refer their disputes, if they see fit to do so. This is the court called for by The Hague Convention of 1907 under the name of the Court of Arbitral Justice. It is the court which the Judicial Settlement Society was organized to promote. It is the court which we are endeavoring to get realized—simply a voluntary institution. Now, why did the World Court Congress plan to confine its efforts, its propaganda, to this voluntary institution, free from any element of force? I repeat, it is because there is unanimity of opinion as to the desirability of the project. You find no objectors to it. Practically all the Governments of the world have endorsed it, peoples have endorsed it, experts and plain men have endorsed it. In other words, it is a realizable project.

Now, the second stage of the larger and more problematic project is a league in which the element of obligation enters to this extent, that the members of the league, if you call it such—parties to the treaty—should obligate themselves to resort to the court. At present there is no obligation embodied in The Hague Convention. Like all our other international institutions, it is there for the nations to use or not, as they like.

In the third stage, the element of obligation is extended to forcing the nations into court. That is to say, if war threatens, we say to the disputants, “You must refer this dispute to the court. We will not force you to carry out the award nor do you bind yourself to do so, but you must go into court and have a hearing.”

Now, many men have come to realize that publicity is three-quarters of the battle for justice. Very often simply bringing out the facts stops not only illegal practices, but also unjust practices not covered by the law, and does it without resort to a court or even to arbitration.

The fourth stage is enforcing the award admittedly giving rise to the danger of oppression unless you have all the progressive nations in the league so that substantial justice would result from its action. The meeting of April 9th, to which I have referred, was unwilling to accept the fourth stage of this plan, namely: enforcing the verdict. Men like Mr. Taft, with his wide experience, Mr. Lowell, who has made a study of governmental institutions, in fact all except two out of the twenty eminent and experienced men gathered at that meeting, were willing to adopt the first three stages of the plan as a “realizable” project, namely, the court, for which this convention stands, the obligations of the States to each other to go into court, and the obligation of the league to force the nation law-breaker into court if recalcitrant.

If there is no obligation on the part of the nation entering the court to abide by the verdict and the league itself will not enforce the verdict, surely no oppression can result from the demand for a hearing. It is a reasonable demand as applied to any controversy whatsoever, whether it be a justiciable controversy or a controversy arising out of a conflict of political policies. The league would simply act as an international grand jury to hale the nation law-breaker into court for a hearing. That is as far as the meeting of April 9th was willing to go, and that is the project, represented in the recent World Court Congress. By starting with this minor project we get something which is practicable and out of the minor project, the larger plan may grow of its own accord.

**THE WAR'S POSSIBLE DURATION
THE PROBLEM OF THE EXHAUSTION OF THE NATIONS
ENGAGED—THEIR ENORMOUS RESOURCES AND
COMPARATIVELY SMALL EXPENDITURE OF WEALTH
AND MEN**

BY
GEORGE K. SHAW

As bearing upon the question of the ability of the warring nations to continue the war indefinitely, Hudson Maxim's book, "Defenseless America," contains some interesting figures and comparisons. "We hear," he says, "Much about the tremendous burden of the present conflict. The pacifists tell us that the nations engaged are destined to exhaust themselves, and that, when the war is over, we need have no fear of any one of them or of a coalition of them, because they will have neither men nor money with which to fight."

Mr. Maxim assumes that the first year of the war will cost the warring powers fifteen billions of dollars. But this is only five per cent. of their total wealth, which is estimated at \$300,000,000,000.

It must also be remembered that the same thing largely holds true in regard to war expenditures that holds true of current expenditures in time of peace. The cost, for the most part, comes out of the ground. The world makes its peaceful expenditures and not only recompenses itself from production, but actually adds to capital. In war, of course, there is a lot of non-productive expenditure, but on the other hand there is some added stimulus of production and greater enforced economy in everything save in

the actual expenditures for carrying on the war. And in the labor of producing war material, transportation and feeding of armies, pay of the soldiers and for all labor incidental to the activities of the war, the money spent is chiefly returned to the people themselves. Labor in all the warring countries is now more highly compensated than it was prior to the war. Mr. Hudson estimates that the actual out-of-pocket loss to the nations in the present war, taking into account the compensating economic advantages, will not exceed two and one half per cent. for the first year's operations.

In regard to loss of population Mr. Maxim's figures are equally striking. The population of the warring nations is more than four hundred millions, taking into account only such part of the East Indian population in proportion to the percentage of troops furnished by them as compared with the percentage furnished by the United Kingdom to the number of its inhabitants. The total number killed and wounded in the whole war, on both sides, during the first six months may be stated at about two millions. Consequently the total loss in killed and wounded during the first six months was less than a half of one per cent. of the populations engaged. Many of the wounded suffer very little permanent injury, and the number killed does not exceed ten per cent. of the total of killed and wounded. Therefore the loss of killed and permanently disabled is much less than half of one per cent., and for the first year will hardly exceed one per cent.

If these estimates are anywhere near correct, it would be a long time before the nations engaged in this gigantic war could be exhausted either in wealth or men.

Some interesting light is thrown upon the ability of one of the warring countries, Germany, to carry on the war indefinitely by a letter written by Prof. Max Sering, of the University of Berlin, to W. S. McNeill, of Richmond, Virginia, and published in a recent issue of the *New York Times*. Prof. Sering was asked by Mr. McNeill for information as to whether Germany would be able to get along with her food and war material supply. Heretofore, he says, Germany has been in the habit of importing from one fifth to one fourth of all her food material and foodstuffs. The shutting off of her sea commerce led to a search for substitutes and also to governmental regulations for economizing supplies. As a result of the unceasing labor of scientists and practical inventors, Prof. Sering announces that the problems of supply have been completely solved in every direction. "We can now,"

he triumphantly announces, "continue the war indefinitely. The complete cutting off of the supply of Chili saltpetre during the war has been made good by our now taking nitrogen directly out of the air. With extraordinary rapidity the question had been solved how the enormous quantities of the needed ammunition was to be produced. It is, however, not only for the needed explosives that we take the nitrogen from the air, but also for fertilizers which we formerly imported in the form of Chilean saltpetre. As for foodstuffs, the government, on February 1, 1915, took over all the grain and prescribed to each one a certain portion of bread and flour. In the beginning this portion was somewhat scant because we wanted to be sure that our supply would last until the new crop. Now, however, it is found that we are entering the new crop year with such large stocks that the price of flour and bread could be reduced considerably and the bread portion of the working population could be enlarged. Potatoes, also which for a time were very expensive, have lately become quite cheap. Unemployment is now less than before the war, the workmen receive higher wages, and the masses are well nourished. The supply of meat will become somewhat scant by and by, but that does not matter, as we have been in the habit of eating too much meat."

As the war proceeds it is inevitable that the other countries engaged in it, whether hostile or friendly, will take example from Germany and resort to measures to conserve and increase their material resources. Modern science has wonderfully unlocked the storehouses of nature, and increased energy and industry can to some extent make good the waste and destruction of war. We cannot therefore expect to see the war end very soon from the exhaustion of any of the combatants. This is the outlook of the war in its physical aspect. What political or moral forces may be evoked to shorten it is beyond our ken.

Mr. Hudson Maxim's book was written to call attention to the practically defenseless condition of the United States and to urge adequate preparation. We do not care to follow him in his voluminous argument on this score, but the concluding paragraph of his ninth chapter, to the effect that "when the war is over, any one of the warring powers, unless Germany is exceedingly humbled, will be in better condition in every way to fight the United States than it would have been before the war broke out," is worthy of careful consideration. Of course Mr. Maxim means any one of the great powers, but we should be in danger, if in danger at all, from no more than three. These

would be Great Britain, Japan, and Germany, as these are the only powers that possess navies strong enough to carry on operations across the seas against the United States, even in our present condition of unpreparedness. And no one of these could afford to attack us unless the others would give tacit consent, or agree to remain neutral. Perhaps after the war is over, however it may end, the European peoples would be so weary of war that they would not permit their governments to stand in the way of any nation that might want to attack this country, and hence that we should have to rely entirely upon our own strength for defense. The question of how much naval and military preparation we should make against future contingencies is a vital one and cannot be ignored. Everybody is in favor of peace. The question is, which is the surest way to peace?—unorganized helplessness, or organized strength?

THE COMPOSITION OF THE WORLD COURT

BY
EMERSON McMILLIN

“Barbarians in ancient times settled their differences with whatever tools came ready to hand. Cultured, refined, and scientific pagans to-day do nothing more, nothing less. Must this continue for all time? Yesterday, hundreds were pleading for saner methods; to-day, thousands plead; to-morrow, millions will demand a better way of settling international differences. What is wanted is some way not based on brute force, but upon the principles of mutual trust and good-will.”

Prior to the Christian era, but little effort was made to avoid war. The normal attitude of Rome, Greece, and of Carthage was one of continuous preparation for war. The Greek City-States did, however, have an organized body empowered to arbitrate differences between the Hellenic peoples.

In the fourteenth, fifteenth and seventeenth centuries, serious efforts were made to devise and establish means for the avoidance of war, but success crowned none of the efforts.

It was after the Jay Treaty between Great Britain and the United States that the settling of international questions by arbitration came into vogue. The many cases successfully and satisfactorily settled between the two Anglo-Saxon nations have doubtless had their influence for good upon other races and states.

Notwithstanding the great advance made by the partial adoption of arbitration, as a mode of settling international controversies—wise men feel that another step forward should be taken through the establishment of a

Court of Justice, a body which will ascertain facts and apply rules of law instead of resorting to negotiation or expediency in the familiar manner of Courts of Arbitration.

The growth of this desire is manifested in the records of the two Hague Conferences. In 1899 it was but necessary to suggest the creation of a World Court to have it promptly put aside as impracticable. After a lapse of but eight years the 1907 Conference adopted the following: "The Conference recommends to the signatory powers the adoption of the project hereunto annexed of a Convention for the establishment of a Court of Arbitral Justice and its putting in effect, as soon as an accord shall be reached upon the choice of the Judges and the Constitution of the Court." This received the unanimous support of all the Conferees.

The happy result obtained is largely attributed to the work of the American delegation in its effort to carry out the instruction of Secretary of State, Elihu Root, which instruction reads as follows: "It should be your great effort to bring about in the second Hague Conference a development of the Hague Tribunal into a permanent tribunal, composed of judges, who are judicial officers and nothing else, and who will devote their entire time to the trial and decision of international causes by judicial methods and under a sense of judicial responsibility."

The 1907 Hague Conference declared that "International Arbitration has for its object the settlement of disputes between states by judges of their own choice, and on the basis of respect for law." That mode of obtaining the personnel of an Arbitration Court may be eminently proper, as "Arbitrators only too often act as negotiators and not as judges, trying a cause on its merits." But causes that are justiciable should not be tried before a body of judges, especially chosen by the litigants.

Under the rules and constitutions agreed upon in the Hague Convention, there is no stipulation as to the number of signatories required, or of states that shall adhere, in order to make the plan available.

To-day, under that Convention, any number of the participants, who may find themselves in accord as to the number of judges to be chosen and the manner of their selection, may complete the unfinished work of the Conference by establishing a workable Court at The Hague. While the Hague Conference failed to agree upon the number of Judges that should

constitute the International Court—yet fifteen appeared to be the favorite number in the minds of the Conferees.

The difficulties encountered by the Conference in attempting to constitute a Court were great. Many plans were submitted. The delegation from our own country presented no less than ten distinct plans, any one of which the delegation would have supported rather than have the Conference fail in completing the establishing of a Court.

One of the plans submitted to the Conference provided that each state should name one judge. This would have made an unwieldy body—“a judicial convention instead of a judicial court,” as was suggested by an American delegate. Another plan submitted provided that each state should designate an elector from the permanent court of arbitration, and that these forty-five electors should select fifteen judges, to constitute the court. This seems fair, and there can be but little doubt that a court so chosen would have been a competent body. Article XV of the Convention establishing the International Prize Court, provides, that each of the eight nations, generally known as the world powers, shall always be represented, or in the language of the Convention, “are always summoned to sit.” While Germany, Austria-Hungary, Italy, Russia, France, Great Britain, United States and Japan are the great world powers, they are not the eight powers with the largest commerce. Belgium exceeds three and the Netherlands exceed four of the world powers in their respective aggregates of commerce. The majority of questions or controversies brought before a judicial court will doubtless arise through commercial channels.

The experience of the United States may be cited as an encouragement for small states to trust the other and more powerful states and to join with them in the selection of fifteen judges. The sections or states from which members of the United States Supreme Court are appointed seem to be a matter of absolute indifference to the American public. Forty-eight states represented by nine judges. Each of these forty-eight states is about as near a sovereign entity as are many of the states represented in the Hague Conference.

It is confidently believed that the several nations would strive with each other to give to an International Court their best men. This would be especially true of those states, whose limited population and restricted commerce would not alone entitle them to a national on the bench.

The necessity for an International Court is so obvious that it need not be discussed. The delegates of forty-five states would not have supported it at The Hague Conference, if there had not been a great desire, and a growing demand for it. The decisions of the Court in causes brought before it will not exhaust all its usefulness. The laws which largely govern the Anglo-Saxon race have grown out of customs sanctioned by Judicial decisions. It may be surmised that not a generation will have passed after the inauguration of an International Court, before International Law will have assumed a stability to which it has not hitherto attained. If, at some future Hague Conference, a convention shall be voted prohibiting belligerents from committing—in reprisal—acts which are otherwise prohibited by international agreement, it will be a long step forward, and will remove a pretext for the violation of international law. At present, almost any wrong may be legally committed by belligerents under the pretext of reprisal.

That the civilized world should desire the Court, and that the delegates from all the nations at an International Conference should unanimously support the effort to create the Court—are encouragements for us all to believe that a plan can be evolved that will meet the emergency temporarily, even if far from perfection. Quoting, in substance, a remark of a great statesman, “Even if one’s hopes may not be realized at once, that is no reason why we should not press forward in the direction in which we see possible success. What is impossible to-day may become possible to-morrow.”

THE MINIMUM NUMBER OF NATIONS REQUIRED TO SUCCESSFULLY INAUGURATE A COURT OF ARBITRAL JUSTICE

BY
HARRY A. GARFIELD

The proposed Court of Arbitral Justice, is one which deals with rules of right existing or to be hereafter set up between sovereign nations. It is distinguished from the so-called "Permanent Court of Arbitration" established at the first Hague Conference in 1899, in this, that it is a true court, while the Court of Arbitration is a representative body of negotiators selected to settle questions largely political. Neither by its composition nor tenure is the Court of Arbitration qualified to deal with questions essentially judicial. The distinction is less difficult for Americans than for foreigners. The line which separates political from judicial functions, though by no means so clear as to be instantly perceived, is a line which every student of law and government in the United States must be able to trace. The settlement of a boundary dispute, of trade or industrial questions, while involving judicial questions, is usually, in international affairs, a question essentially or chiefly political. Questions of this kind can be settled by resort to compromise. On the other hand, if two nations are agreed as to the rule of right, that is to say, if there is in each a notion which has become fixed in favor of a certain course of conduct as just and of another as unjust, any question involving this distinction is essentially and primarily a question for a court of justice.

The International Court of Prize, established by the second Hague Conference, fulfils still another function. It is a war court, as its title

indicates, and has no jurisdiction over controversies arising in times of peace. The Court of Arbitral Justice, now under consideration, while it may be called upon to deal with disputes arising out of war, is primarily intended to decide questions of law founded in justice in such manner and at such time as to prevent war. It is to be noted furthermore that the object is not merely to settle an issue temporarily. Temporary settlements are compromises and can be reached by resort to the Court of Arbitration. Questions of law must be so disposed of that each of the contending parties will immediately or in the long run assent to the basis of the settlement, not merely because it is according to law but because by common acceptance it is believed to be just. In other words, the chief function of the proposed court will be to guide and direct the hearts as well as the minds of men toward the eradication of those deep seated causes of difference which have plunged nations into war. In defending the method of balancing the departments of government set up in our constitution, Hamilton pointed out a truth which has become fundamental to the American student of Political Science. His observation is applicable to international affairs. "Justice," says Hamilton, "is the end of government; it is the end of society; it ever has been and ever will be pursued until it be obtained or until liberty be lost in the pursuit. In a society under the forms of which the stronger faction can readily unite and oppress the weaker, anarchy can as truly be said to reign as in a state of nature where the weaker individual is not secured against the violence of the stronger." (Federalist 51).

One of my associates has described wars growing out of deep-seated differences between nations as earthquake wars. I like the expression, for it conveys to the mind the inevitable result accompanying fundamental differences which, boiling up within, crack the surface of our good intentions. The ultimate object of the establishment of a Court of Arbitral Justice is to prevent these abysmal disturbances which, if allowed to exist, will sooner or later destroy any institution, political or judicial, set up by the nations. The immediate object is to come to a common understanding of international justice, and to formulate rules for the conduct of nations based on that understanding.

At this point a difference appears which apparently contributed largely to the defeat of the Article of the first convention of the second Hague Conference, under which, had it been adopted, the Court of Arbitral Justice would quickly have come into existence. The relation of the judicial to the

other departments of government under our constitutional system is radically different from that with which other nations are familiar. While there has of late been much agitation of the question whether the Supreme Court of the United States ought to be permitted to overrule the will of the people expressed through legislative bodies, it is nevertheless fundamental to our system that the Supreme Court stands above the legislative and the executive when a constitutional question is at issue. We have deliberately and wisely set over our institutions of government this great tribunal which protects the individual, whether the weakest human being or the latest artificial person created under the law. When the question of the composition of the Court of Arbitral Justice was under discussion at the Hague in 1907, M. Barbosa of Brazil brought in a proposal providing for the equal representation of the 46 nations in the composition of the Court, dividing the whole body into three groups to serve for a period of three years each in the total of nine for which they should be chosen. This proposal was afterward withdrawn by its author, but the Significance of the suggestion lies in this, that the delegates from Brazil conceived of the Court as a body of representatives of the several powers. As has been frequently pointed out, such a body would be a judicial assembly, not a judicial court, better calculated to frame codes than to weigh legal principles. But the fact was that M. Barbosa did not believe in the plan of an International Supreme Court. To his mind and to the minds of all of those who oppose the American conception of the relation between the legal and political arms of government, such a court of justice would subordinate sovereignty. Such a court to their minds is inconsistent, as Mr. Scott has pointed out (Hague Conferences, vol. I, pp. 458–9), with the sovereignty of nations. At first sight, there appears to be little reason why the method agreed upon for the constitution of the International Prize Court should not be applied to the selection of judges for the Court of Justice. A little reflection, however, reveals an important difference. As already pointed out, the Prize Court is organized to settle international questions arising out of war. There is little objection, therefore, to the arrangement for rotation in office of the judges. When, however, as in the case of the proposed Court, there is set up a body which is given jurisdiction over questions of international rights with powers like those of a common law court to evolve by the cumulation of their decisions new rules of international law, it is easy to perceive why all

the powers represented at the Hague agreed that the judges sitting in this court must possess the highest qualities of judicial mind and learning.

Enough has been said by way of introduction, to lead up to the main question, the minimum number of nations required to successfully inaugurate the court. Mr. Thomas Raeburn White, speaking at the third national conference of the American Society for Judicial Settlement of International Disputes, in December, 1912, analyzed the articles of the convention providing for the establishment of the court and showed that the question was clearly left to the powers represented at the conference and could be adopted by any two or more of them when they saw fit. There appears to be no serious dissent from this proposition. Therefore, the question is not whether two nations may of right inaugurate the court, but whether two nations can successfully set it up. What is meant by successfully? Undoubtedly this: that, when the court is set up by two or more nations, it will be resorted to not only by the nations inaugurating it, but by others for the settlement of those great questions of international right which the framers of the convention had in mind when formulating the organic act.

Our able and far-seeing Secretary of State, Elihu Root, in issuing instructions to the delegates of the second Hague Conference, set before them a distinction which I believe ought never to be lost sight of in providing for the establishment of this court. He said in substance that the court should be composed of judges representing the several great juridical systems of the world. What this court must undertake to do, if it is to lead men and nations to accept a common standard of international right, is to reconcile whatever differences now exist in the minds of men, concerning the essentials of justice. If men living under one system regard conduct as just which men living under another system think unjust, it is obvious that these differences must be reconciled. Hence, the success of the court will be more nearly assured if it is inaugurated by two nations of opposite juridical experiences and concepts than if inaugurated by several times that number, all bred under a single system. The nations represented at the Hague Conference all draw their juridical systems from one of two sources, the Civil Law of Rome or the Common Law of England. Among the large number deriving their systems from Roman origin, there are many and important shades of difference, and in some of the nations which in recent years have reorganized their codes both sources are drawn upon.

Nevertheless there is generally speaking, this difference of origin to take into account. Among the eight Great Powers above named, the British Empire and the United States are the Common Law nations. The other six are inheritors of the Roman system. In a general way, these six fall into three groups, Germany and Austria in one, France and Italy in another, and Japan and Russia in still a third, unless the last two should be treated separately. It seems to me that the inclusion of representatives of the different juridical systems is so important that it becomes determinative. I should therefore say, the court can be successfully inaugurated by four of the Great Powers, provided the four include one nation of each of the following groups:

1. Great Britain and the United States;
2. France and Italy;
3. Germany and Austria-Hungary; and
4. Japan and Russia.

The court might succeed if the United States and one of the Great Powers of the Continent set it up, but in that case the success would consist in merely making a beginning, in keeping the court alive until others should join in its maintenance, whereas, with four nations uniting as above proposed, with the opportunity open to others to come in, a strong beginning would be made—in other words, the proposed court could be successfully inaugurated.

THE BREAKDOWN OF “CULTURE” AS A REDEEMPTIVE FORCE

All thinking and serious people must, in the past year, spontaneously have reflected upon the shocking incongruity of the most cultured nations of the earth—Germany, France, England, Italy, and in many respects, Russia and Japan—being engaged in a warfare which has no parallel in all of humanity’s previous pages. Hitherto we have been assured that culture, science, literature, art, music, the drama, invention, discovery, technical advance, governmental efficiency, social reform, and all that belongs to the educative phases of man’s progress, constituted all the gospel we needed, and could be relied upon in any event as the mainstay of civilization and the true inspiration of man’s upward and onward course to higher and still higher degrees of attainment. Those who held otherwise and contended that these were not sufficient, but that religion and the ethical teachings of the Bible must ever be the incentive of the world’s substantial growth in depth of character, were looked upon in many quarters as somewhat narrow sectarians, or perhaps regarded superciliously as uncultivated fanatics.

But the failure of culture and mere intellectualism to secure man’s salvation is so evident and appalling in the light of what is happening on the blood-soaked soil of Europe, that the contention of the Secularists has received an answer which is indisputable and conclusive. Culture and education, admittedly the noblest products of man’s endeavor, have fallen disastrously short of the promises made in their behalf. The neglect of religion, the decay of a vital faith, have resulted in an awful catastrophe. To him who runs and reads the signs of our times, the proclamation of the prophets of religion and the ministers of Christ have proved themselves so true as to need no further substantiation. Trust in Jehovah and reliance upon the Redeemer of the world for salvation from sin and the sanctification of

the human heart, have once more demonstrated their own absolute necessity.

The end of all education—of all development in the name and line of culture—ought to lie in the strengthening of character. Of what use are all material achievements if only a dismal emptiness is bound up within? Of what profit is it, says one, whether our railroad trains run sixty miles an hour, if men are fools when they enter, and fools still when they leave? Of what significance is the wonder of wireless telegraphy, if the electric flashes through the ether convey only the accounts of commercial frauds, the follies of the rich, the discontent of the poor, social intrigues, and political scandals? Why should we educate our youth if, in the end, they have learned only to lie more plausibly or forge more cleverly? Caliban's caustic observation was that the only profit he had secured from being taught his master's language was that he now knew how to curse. A cultivated scoundrel may do more harm with a stroke of his pen than a score of rude burglars can accomplish in twelve months. A superficial education, divorced from religion, may be handmade to villainy's more effectual service.

Said Huxley once, "Clever men are as common as blackberries; the rare thing is to find a good man." This chord was struck strongly by Kipling in his "Recessional:"

"Still stands thine ancient sacrifice,
An humble and a contrite heart:
Lord, God of Hosts, be with us yet
Lest we forget, lest we forget!"

Well did Milton exhort those of his own people in these words: "Let not England forget her precedent in teaching nations how to live." If the homely and commonplace virtues are allowed to die out in vanities and self-indulgences; if the qualities of self-respect and righteousness, so necessary to our national perpetuity, shall decay through neglect, no amount of mere material prosperity can ever make amends for the disaster.

The world owes a great debt of gratitude without question to Greece and its prophets of the intellect—those who have stood forth through all the generations since as the authorities in philosophy, physics, art, architecture, sculpture, oratory, and politics. Such names as Thales, Pythagoras, Democritus, Socrates, Plato, Aristotle, Pheidias, Praxiteles, Archimedes,

Thucydides, Pericles will always shine as stars of the first magnitude in the intellectual heavens. But salvation was not of the Greeks, but “of the Jews.” When we turn to the pages of the Psalmist, the Prophets, and the Evangelists, we scarcely shall find a word about philosophy, geometry, music, painting, the science of politics, or the construction, constitution, movements, and mysteries of the physical universe. But Isaiah, Micah, Amos, the Gospel writers, and Saint Paul—and, infinitely above all, the Carpenter Prophet of Nazareth—have given the world the loftiest and most absolutely necessary rules and ideals of living. Cleverness is evermore inferior to goodness. Let a man have no matter what completeness of education, the ultimate question remains, “How is he going to use it?” And this query must be answered by something beyond the mental development itself. The Devil is accredited with having a first-class mind and a brilliant understanding. A man bearing all the university degrees, if not chastened and restrained by the spirit of a living religious faith, may prove more of a curse than of a blessing to his fellows. The mention of such personalities as Alexander VI, Macchiavelli, Napoleon, and Byron is enough to support the claim we are making. There has never been a great revival of religion which did not result in a corresponding turning away from frivolity and vice to a soulful seriousness and nobler form of life. The ages of faith have also been, as proved by the careers of John Knox, the Puritans, and John Wesley, the ages of national greatness.

Well did Tennyson pray, in lines oft quoted:

“Let knowledge grow from more to more,
But more of reverence in us dwell;
That mind and soul, according well,
May make one music as before.

“But vaster. We are fools and slight;
We mock Thee when we do not fear:
But help thy foolish ones to bear:
Help thy vain worlds to bear thy light.”

And again, speaking of his dead friend, Arthur Hallam, he expresses the longing of his own devout soul:

“I would the great world grew like thee,
Who grewest not alone in power
And knowledge, but by year and hour

In reverence and in charity.”

And once more, toward the close of that noblest poem of the nineteenth century, he thus invokes the spirit of Hallam:

“O living will that shalt endure
When all that seems shall suffer shock,
Rise in the spiritual rock,
Flow thro’ our deeds and make them pure.

“That we may lift from out of dust
A voice as unto him that hears,
A cry above the conquered years
To One that with us works, and trust,

“With faith that comes of self-control,
The truths that never can be proved
Until we close with all we loved,
And all we flowed from, soul in soul.”
—*Western Christian Advocate*.

THE CHURCH AS A FACTOR IN RACIAL RELATIONS

BY
REV. SIDNEY L. GULICK

The human race is entering upon a new era of development. Space has practically collapsed bringing into immediate relations races and civilizations that have come into being through milleniums of divergent evolution. The impact of Christendom on Asia has at last started into new activity those long torpid peoples comprising more than one-half of the human race. Asia is awaking, is learning: she is acquiring our modes of thought and life and organization.

These two facts, the collapse of space and the awakening of Asia are creating a new world-situation. To adapt herself to the conditions created for her by the West, the East has found herself forced to abandon her isolation and to reorganize the entire scheme of life and thought which she has been developing for not less than four thousand years.

But Asia's awakening and acquisition of Western modes of political, industrial, commercial and intellectual life, and particularly her development of military power, and national ambitions, and her insistence on national rights, are creating a new world-situation for Western lands.

Twenty-six years of life in Japan have colored my brain with the Orient. It is widely assumed that the white race is, and is to remain dominant, the supreme factor in the world's history; and that our primary problem is concerned with the establishment of such arrangements between the white nations as will produce peace here. We little realize, however, the mighty

significance of the new factors that are coming into our lives because of the rise of other parts of the human race.

The white man little appreciates the Asiatic. He suspects, dislikes, scorns, despises him, and is not willing to treat him on the basis of equality, justice and courtesy. To this day even in this Christian land, we are not dealing justly with the alien, especially the alien from Asia. And this is creating a serious situation.

Now the Church has been an important factor in creating the new world-situation. Through its missionary activity, entirely devoid of desires for territorial aggression, the Church has sent into every nation men without a particle of racial ambition. They have become friends of individuals of other races; they have come to understand those lands and their peoples and these in turn have come to understand, trust, and love the missionaries. In these ways there have been imparted to Japan and China ideals, conceptions, and ambitions which are proving to be mighty forces in those lands. Japan would not be what she is to-day had it not been for those early missionaries who went to that land in the sixties and seventies. The few young men who were taught by them in Western ways became the leaders of Japan; they saw and helped their fellow-countrymen to see that Japan must learn what the West had to teach her. Japan humbled her proud head. In the last forty years she has employed more than five thousand white men to come to her land to teach, and no one can tell how many thousand of her young men have traveled and studied in foreign lands, and returned with treasures inestimable. In a single generation Japan has taken her place as one of the leading nations.

One thing I would like to impress upon peace workers, is this: Japan is tired of having peace lecturers come to tell her about the horrors of war and the importance of peace. What Japan asks is justice. If we do not give her justice she cares nothing for peace. Peace lecturers, as a rule, little realize that Japan is no longer a child. She is pretty well grown up, and is better acquainted as a whole with the political conditions of the world than any other nation. She has sent her young men into every nation and they have returned speaking the languages of all the civilized peoples of the world. They can read the newspapers of every land and know what is going on. The news of the world is better presented in the newspapers of Japan than it

is in the majority of our papers in this country. Japan is no longer a child. She understands the world situation and realizes it.

But because Japan is Asiatic, we suspect and fear her; we even get hysterical about her. Once when the anti-alien legislation of California was the cause of international tension one of our Generals is reported to have asked for four hundred and fifty thousand troops with which to patrol the Pacific coast, fearing an attack from Japan. This reveals an extraordinary misunderstanding. Japan desires friendship with America and will do anything consistent with national dignity and honor to maintain friendship. During the last five years she has consistently carried out the so-called Gentlemen's Agreement because of which there are some seven thousand less Japanese in America to-day than there were when the arrangement went into operation. California, however, ignoring that fact, went ahead with invidious race-discriminating legislation. Japan does not want any more preachers of peace. She wants preachers of justice.

For sixty years now we have had relations with Japan and they have been remarkably friendly. To-day we have China's unqualified friendship. We returned a few years ago to China the Boxer indemnity; in the seventies, we returned the Shimonoseki indemnity to Japan. These splendid acts have been highly appreciated. But do you realize that we are losing Japan's friendship and in turn will surely lose that of China, because we are not keeping our treaty pledges? Do you realize that we are continuously subjecting the Chinese in our land to indignities that deeply wound their feelings? We are confronting a serious situation, serious because we are so ignorant and so indifferent.

So much in regard to the problems. Turning now to the solution. Ought not the Church to be a main factor in solving the problems of the new era in race relations? It should teach us with new insistence that God is no respecter of races; all alike are His children and beloved by Him. It is so easy for a people to think of themselves as God's pet child, even as the Jews thought of themselves as the elect race. We white people regard ourselves as inherently superior to all others. We are, however, profoundly ignorant of the Asiatic and therefore we scorn and despise him. We easily fancy that a gulf divides us.

There is indeed a difference between us, but it is not such a difference as is generally assumed, nor is it insuperable. My life in Japan has brought me

into such relationship with Japanese that I am perfectly clear on this point. To talk about an insuperable obstacle, a profound gulf that separates the East from the West is the result of insufficient experience. One of the important things, therefore, which the Church can do and is doing through its thousands of foreign missionaries is to gain wide and real knowledge of the East as it has been and as it now is, and then to impart that knowledge to the nations of the West.

The second great thing which the Church can and should do is to insist that our laws shall be so framed and administered as to do justice to Asiatics in this land. Until we do that, can we claim that ours is a Christian land? As a matter of fact, we do not grant the Asiatic a square deal in this country nor give them an open door; yet we demand them for ourselves over there. We do not even give them the courtesy which we secure. The Asiatic is more sensitive to slight or insult than we are. We are thick-skinned. In their civilization courtesy is a highly important element. But we go on in our blunt ways wounding their feelings, and even disregarding their rights. Is it not time for our churches to insist that our laws shall be so modified, framed, and administered as to do them justice and to deal with them courteously?

The Church is facing a new testing time and a new time of opportunity with regard to the relation of the races. The first great testing time of the churches occurred immediately after Pentecost when Jewish Christians thought that Gentiles had to become Jews before they could be Christians and brothers. But the Holy Spirit led them to see that all men are brothers, without becoming Jews, and those early Christians learned even to eat with Samaritans and with Gentiles; they welcomed them into their brotherhood. Now it is the white man who feels that he is the elect race and has special hold upon the grace of God; he looks down upon other races as inferior. But God is teaching us our error. The Asiatic is indeed our equal. I would just as soon sit at the feet of competent Japanese professors as I would at the feet of professors of German or American extraction. We are discovering that Asiatics are as brainy as we are; and that they produce men of splendid character. But it is a question to-day whether and how far our churches are willing to accept the fact that men of other races and colors and even with almond eyes, are our equals. This is a new testing time for the churches and also a time of rare opportunity.

POSSIBILITIES AND LIMITATIONS OF A WORLD COURT

BY
WILLIAM DUDLEY FOULKE

In considering the possibilities and limitations of a world tribunal an American naturally turns his eyes to the experience of his own country especially to the development of the Supreme Court of the United States. The history of the development of our National Constitution and judiciary out of the mere league organized by Articles of Confederation, foreshadows in its general features the course which mankind is likely to take in organizing some coming federation of the United States of Europe or of the world. For the balance-of-power statesmanship which has prevailed since the middle ages lead to a condition of very unstable equilibrium which can not and will not continue forever. The civilized world was a great empire once and it will be at some period hereafter either a great empire, with nationalities subjugated or extinguished or else a great federation with nationalities recognized for local and national purposes, but subject to one general control for international purposes. The gradual union of mankind in larger and larger units, first the family, then the clan, the tribe, the city, the nation and finally the empire or the great federated republic will have its final completion in a world empire or a world federation. That will be the only way in which war will ever become extinct and the history of our own confederation and our subsequent federal union is pointing out the method in which this world union can best be established.

Of course we realize that such a change cannot take place at once. Very few stones in this gigantic structure can be laid at one time. Many harvests

will ripen and the snows of many winters will cover the earth before the majestic fabric of a world state shall lift its dome to heaven. But the foundation courses have already been laid in the Hague Conferences and the panel of judges; and the one thing most practicable to-day to further the building of this tremendous edifice is the establishment of a permanent World Court. By making this the next stage of development we pursue indeed, not the precise course adopted in the making of our Federal Constitution, but we follow the line of least resistance.

It is evident that the jurisdiction of the World Court at the beginning will be less extensive than that of our Supreme Court to-day. It ought perhaps to include at first only one thing, controversies between nations, and only such controversies as may properly be submitted to a court—only justiciable questions. But what are justiciable questions? They have been defined as questions of law or fact relating to the interpretation of a treaty or the obligations of international law. But this definition is most elastic. International jurisprudence is yet in a rudimentary condition and its principles, many of them, are yet undetermined. No one knows yet just how far they may be extended by the construction of a World Court. When Austria began war against Servia, was that a breach of international law? When Russia determined to come to the aid of a kindred people whom she had taken under her protection and then mobilized for the invasion of Austria, was that a breach of international law? Perhaps most jurists will say, no, these were political questions to be handled by a Council of Conciliation or some other body. Yet all this depends upon construction and upon the determination of what international law really requires. Is not the invasion of the territory of a friendly nation which has given the invader no direct provocation, a breach of international law? Who shall decide? If this question, too, be left to the proposed World Court, that body may decide that anything is justiciable and may assume jurisdiction over questions of vital national policy. Will the great nations of the world agree to that? Will they submit what they consider their most vital interests to any tribunal?

And now we come to the much disputed question whether nations should agree to refer questions affecting their honor and vital interests to an international tribunal. Here we are in this dilemma. If a treaty agreeing to submit disputes to a court, should exclude all questions of honor and vital interests then almost any question may be considered a question of honor or vital interest at the will of the nation so desiring and the treaty will mean

very little. On the other hand, if questions of honor and vital interest are included in the things to be submitted, then if a real vital interest is affected, the probabilities are very strong that the decree of the court will not be acquiesced in by the losing party. Germany considered that her vital interests demanded a passage through Belgium into France so the treaty became a “scrap of paper.” America thinks that her vital interests require that no new aggressive military foreign power shall obtain a foot-hold close to our boundaries on our own continent. We feel that our national security requires this. Would we consent to submit this question to a World Court? International law would allow Denmark to sell St. Thomas to Germany or Colombia to sell a strip of land adjacent to Panama for military and naval purposes. International law would allow Mexico to sell Lower California with Magdalena Bay to Japan. A World Court would decide they had the right to do it. Suppose the sale were made and a German or Japanese navy with transports and an army came to take possession, would we submit this question to a World Court? Would we even delay our defense long enough to refer to a Council of Conciliation with the months or years which must elapse before decision during which time the foreign power would go on taking possession, fortifying and garrisoning a naval and military base right at our very doors? Such a position reminds me of the stanza once quoted in Parliament:

“I hear a lion in the lobby roar;
Say, Mr. Speaker, shall we shut the door
And keep him out, or shall we let him in
And see if we can get him out again?”

No nation will submit a really vital question involving its national life to a World Court and then keep the agreement if the decision is adverse.

Is it not then evident that the agreement of submission must itself provide exactly what vital questions shall be excluded? In other words, that the signatory powers (according to the suggestion made by Mr. Roosevelt) “shall by solemn covenant agree as to their respective rights which shall not be questioned; that they shall agree that all other questions arising between them shall be submitted to a court.”

This agreement would provide that the territory of the contracting powers should be inviolate and that it should be guaranteed absolutely its sovereign rights in certain other particulars including for instance the right to decide

the terms on which immigrants should be admitted; to regulate its domestic affairs in its own way and such other questions as the contracting powers considered affected their vital interests or the vital interests of any of them. These specified questions ought not to be submitted to the court; they ought to be mutually guaranteed in advance and all matters not so specified should be subject to the jurisdiction of the international tribunal.

Here you have the jurisdiction of the court definitely laid down in the treaty creating it. Wider jurisdiction can afterward be conferred as circumstances may justify, it is to be hoped that other Hague Conferences may gradually provide a more and more extended code of international law which the court is to administer and that its jurisdiction may finally extend to all the other principal questions which are now submitted to our federal tribunals under our own constitution. But this more extensive jurisdiction would be granted (as in the case of our own Constitution) only after the federation becomes a more perfect union, and when there shall be established a sufficient sanction of its decrees.

And now we come to the most important and the most difficult branch of the subject. How can the decrees of an international court be enforced? By public opinion? By agreements of the signatory powers? Or by an international police-force which of course means an international army controlled by an international executive?

Some of us used to hope that international public opinion, while quite insufficient to-day to enforce the judgment of a World Court, might gradually grow to such strength and power that it could finally be counted on alone to give force to the decisions of this tribunal. The events of the present war have shattered to a great extent such hopes as these. After the invasions of Belgium and Luxembourg, the wrecking of Louvain, the attack on helpless Scarborough, the dropping of bombs from the air on undefended towns, the destruction of the *Lusitania*, the coercion of unoffending China, it is hard to say that public opinion will restrain a military power from any act whatever or will compel the performance of any duty to other nations or to mankind at large. If the world had advanced so little in the nineteen hundred years of Christianity, how long will it take in the future to induce all the great nations to do justice?

The next alternative is that the power creating this court shall agree beforehand to enforce its decrees by the joint use of their military forces

against any nation which may refuse compliance. That is probably as far as the world can go to-day and yet how ineffective it may be is shown both by the past experience of the American Confederation and by the failure to observe the Hague convention and other existing treaties during the present war. Such an agreement will have the same defect as the Articles of Confederation. It can only act upon nations in their corporate capacity and not upon individuals, and there will be no central authority with either purse or sword by which to carry out its guarantees. It will be necessarily a transitory state. The treaties signed by the great powers did not protect Belgium. The Hague Convention to which every great nation was a signatory has been violated in many particulars. Our nation was a signatory to the Hague tribunal yet all these violations have not aroused us to a single act for the maintenance of the Hague Convention, nay, they did not bring out a single protest or remonstrance until our own interests or the persons or property of our citizens became involved. How far then can we trust other nations to protect each other against violations of their mutual agreements? As in the case of the single states in the American Confederation, some will do it and some will not.

Yet what better can we do to-day? If the nations joining the league would be willing now to establish an international executive council with power to enforce such agreements and to raise an international army for that purpose we would be taking a long step toward a really efficient union. But at this moment the composition of such an executive council would be beset by very great difficulties. Even if that question could be settled, how many nations to-day would be willing to surrender any part of their ultimate sovereignty to a federal union? Is it not evident that the world is no more ripe for such a union now than the thirteen colonies were ripe for our own federal constitution, while they were still carrying on the War of Independence?

But it was during that war that our first league of American states was formed—imperfect and inadequate—but a precursor of better things. It was at the outbreak of the present war that an alliance was made among a number of the great powers. It is at the conclusion of this war that we may hope for a league among many of the most powerful nations for the maintenance of peace;—a league, imperfect and rudimentary at the beginning but which may well develop, when its imperfections have been realized and the necessity of a “more perfect union,” becomes clear into a

world wide confederacy, which shall have a full dominion over the nations that compose it as our federal union now has over the states of the American republic.

But even then the whole work will not be done, insurrections and rebellions, like our own civil war, may be required to consolidate that union more and more firmly before the time shall come when nations shall not take up arms against nation, neither shall they learn war any more.

HOW LARGE IS A ROSE?

I said to a gardener old one day,
 “How large is a rose; how large is a rose?”
He measured an inch and a half each way
And kindly smiled as a gardener may:
“Measured by inches I should say
 That *that’s* the size of a rose.”

I said to a bride one night in June,
 “How large is a rose; how large is a rose?”
“By the memory sweet of an old love tune,
And the vows that were pledged by the light of the moon,
Measured by these, all passed too soon.
 Ah, that’s the size of a rose.”

But still my question perseveres,
 “ Oh, sorrowing one, how large is a rose?”
And withered and dead as her hopes and fears
She showed me the roses of other years,
The blighted blossoms bathed in tears.
 “ Ah, that’s the size of a rose.”

I said at last, “ Oh, heart my own,
 How large is the Rose, Sweet Sharon’s Rose?”
“Measured from Calvary’s suffering moan
Where mortals weep o’er their sins, and groan,
Up to Immanuel’s conquering throne,
 Lo! that’s the size of the Rose.”

—James Albert Burchit.

THE BUSINESS MAN IN POLITICS

BY
JOHN HAYS HAMMOND

In our last Congress, out of ninety-six members of the Senate and four hundred and thirty-five members of the House of Representatives, only about seventy legislators were classified as business men. This means that the Congress of the United States cannot be regarded as a genuinely representative body. To make it such, we should have a much larger representation than we have of the business class in the broadest sense of the term,—that is, not only manufacturers, merchants, and bankers, but also farmers, engineers, leaders of labor organizations, scientific men, journalists, physicians, educators, and men of other vocations influential in the life of the Nation.

This conception of the proper make-up of our legislative bodies is a comparatively new and unfamiliar one, partly because it has been felt that legal training and practice in applying the laws in courts made men particularly fitted to be law-makers and partly because until recently decidedly few business men have attracted public attention by reason of their knowledge and skill in handling questions of government. The old idea of the statesman was that he ought to be detached from the active every-day interests of the community and thus be in a position to give his attention to general matters of public and national policy. The present generation, however, has been coming to realize that most of these matters are directly or indirectly related to the business of the citizens of the country and that the wise determination of them involves taking into account the principles and the necessary practices of business. Hence the subject of the place of the business man in politics is becoming one of compelling interest, not

only because of patriotic considerations, but also on account of the enlightened self-interest which should serve as a guide in legislation for the benefit of the country as a whole, as well as of the individuals who are its citizens.

For his comparatively small representation in legislative halls the business man himself is largely to blame. There has been a lamentable lack of interest on the part of American business men as a class in our country's political affairs. By many of them politics has been regarded as having merely an academic interest, so far as they were concerned; by others politics has been held to be an unclean vocation. In a way, however, these allegations about the character of politics have been only convenient excuses for failure to take a proper part in public affairs. Generally speaking, the plain, unvarnished reason for the failure of business men to discharge their political duties has been their unwillingness to make the necessary sacrifices of social pleasures, of money or of present business opportunities. Business men who allow such motives to dominate their actions are simply shirking their civic responsibilities, are essentially disloyal to the community from which they derive their support, and should be so stigmatized by their fellow-citizens.

Still less justifiable than the indifference to politics which has just been described is the habit which too many business men, especially those controlling large corporations, have permitted themselves to fall into, of dealing with political and legislative matters at second hand and by indirection. This habit, fortunately for the country, has of late been greatly diminishing because of the strong condemnation of it by enlightened public opinion; but it cannot be denied that for many years in our political history the owners and managers of important corporations, with some notable exceptions, regarded it as justifiable, while keeping out of politics themselves, to make generous contributions to campaign funds and thus to assist in electing legislators who could be counted upon to attend to matters of legislation affecting their interests. Apart from its moral objections, this practice necessarily developed a class of mere professional politicians without any qualifications whatsoever to deal with the great business problems of our cities, our States and the Nation itself. Every thinking American must admit that a highly beneficial result of the agitation of the question of the relation of government to business in the past few years has been to bring about a vast change in this order of things. Corporations are

no longer able to dictate legislation for their selfish ends through a conscienceless and morally stultified class of political representatives. It is well that this rank undergrowth, which impeded all proper participation in politics on the part of self-respecting business men, has been to a great extent cleared away.

There is a growing realization on the part of the public that our business prosperity and our political soundness are mutually interdependent,—that we cannot have business prosperity without the aid of just, adequate and far-sighted government, and that we cannot have permanently satisfactory public policies without the aid of the experienced and enlightened business class. Especially is this truth being impressed upon the minds of citizens of the country as they reflect upon the conditions that will have to be met as a result of the European War. We have already had a chance to see how few men in American public life are able to cope with far-reaching international problems, while at the same time it is rapidly dawning upon us that our chief political and economic problems of the future will be of the world, and not of the “parish pump,” type. This is bringing home to our minds the interdependence of all our industries and business activities, and of all classes in the community, in whatever vocations they may be engaged. There can be but little doubt that as public thinking follows these lines more and more fully and resolutely there will be a tendency in our future legislation, which the demagogic politicians will be unable to withstand, to subordinate considerations of petty political advantage, and of partisan aims and ends, to the right solution of the great economic problems which are at last seen to be vital to the welfare of the Nation, at home and abroad.

The assistance which business men can give in the work of arriving at correct solutions of these great economic problems is apparent. It is also apparent that without this assistance Congress and the administrative departments of our Government cannot be expected to reach correct and adequate conclusions in regard to them. The truth is that our Government as a whole is at this very moment suffering severely in efficiency and economy from the lack of the continuous participation of able business men in the conduct of its affairs. The administration of our governmental departments, for instance, is confessedly obsolete and uneconomical, if judged by the best business standards. Thus, both an increase in our national revenues and a decrease in our national expenditures could undoubtedly be effected through the coöperation of expert business men in Congress with

the heads of these departments in the introduction of the most approved business methods. In the management of the ordinary affairs of the country our Government had been well likened to a great corporation in which all the people of the country are stockholders. This conception has not yet become universal, but when it does—and it undoubtedly will—there will result a general demand for successful business men in the administration of the People's Corporation.

This, however, will be only a part of the demand that will arise when it is more fully appreciated how impossible it is to arrive at sound public policies and practices with respect to any matter, domestic or foreign, affecting the country, without having due regard for the business principles which control the means by which almost all the material and ideal benefits of society are procured. The larger demand will be that the politicians cease to look upon politics as a field reserved for their own often purely selfish activities and that business men as a class no longer treat politics as having only a remote and academic interest for them and hence as deserving to be relegated to irresponsible theorists or to casually selected and mainly incompetent legislators.

A new conception of the qualifications of those who conduct our Government is beginning to take shape in this country. Time was when the prevalent popular notion was that the chief qualification required for a political career was to be an adept in the Machiavellian arts; and the currency of this notion has undoubtedly deterred many a conscientious man of tender susceptibilities from taking the part in politics for which he was well fitted by his business experience and in which he could have been of great benefit to the community. But this conception is rapidly passing, no doubt to the intense irritation of some of the surviving politicians of the old school, who are having it impressed upon them that indispensable prerequisites to real and abiding success in politics, as well as in business, are integrity of purpose, straight-forwardness in dealing with the public and an honest intent to serve, not their own selfish interests, but the permanent good of the community. The old-time equivocations, lack of candor and nefarious machinations of the resourceful party boss have now so little chance of success that it is clear, even to those who are reluctant to give them up, that they must now be consigned to the scrap-heap of discredited politics. And it is this very fact that removes the most disagreeable obstacles from the way of the able yet scrupulous business man who feels impelled to

do his share towards making politics subserve the best interests of the country.

The consequences of the tendencies just described are already observable in our public life. While unfortunately it is still true that the average character and qualifications of our political leaders, legislators and officeholders are by no means of the high standard required by the great economic and political interests of the country, yet I do not like the muckrakers' sweeping denunciations of our public men as a class. I have had some opportunity in recent years to observe these public men, and what I have seen of them has given me the opinion that the majority of them are of unimpeachable integrity and that not a few of them possess uncommon ability. Certainly the vast interests of the United States demand that those intrusted with the duties of government should have political wisdom and business capacity of the highest kind,—undoubtedly much higher than we have yet attained on the average; but nothing whatever is gained by dishonest or even by undeserved criticism of men in public station. Disingenuous and purely political abuse of our legislators and public officers serves but to belittle the critics, to diminish the legitimate influence of the press which prints and circulates their diatribes, and, worse still, to deter many desirable men from entering the public service. Nothing could be more harmful to the Nation.

All this but emphasizes the fact that the ideal we should steadily pursue is to fill our Government, both on the legislative and on the administrative side, with men of the broadest practical experience and with the highest conceptions of the disinterested service and the honorable fulfilment of their duties required of them for the public good. The community derives little advantage from the mere gratification of the personal political ambitions of its public men. Politics, rightly conceived, cannot be regarded as primarily intended to afford a field for those whose motives, even if not illegitimate, are characterized more by a desire for self-advancement than by a sense of obligation to handle the Nation's affairs in the soundest and most efficient way. What is needed first of all, is that the American people should be able to say with absolute assurance that its Congress and its National administrative departments (not to mention its State and municipal governmental agencies) are composed of such men that the principles of sound, efficient, economical and honorable business can be counted upon to

prevail in the handling of all matters, notwithstanding all the extravagant proposals of loose thinking or self-seeking politicians of the lower type.

The people must make up their minds that they will have the responsible positions in the Government, legislative or administrative, occupied by men who have demonstrated their ability and success as enlightened business men. Already in the selection of political leaders our voters are beginning to call for men about whose personal integrity there is no doubt—men above the influence of the selfish and unscrupulous corporations, on the one hand, or the dictation of the so-called labor vote, on the other; men who have the courage of their convictions and who can be relied upon to give their support to legislative measures which best serve the interest of the general public, irrespective of all other considerations. This is an enormous gain for the country. But much more is necessary. The entire Government and the politics that determines what it shall be must be infused with the spirit of sound knowledge and aggressive efficiency which characterizes American business of the best type. The place of our business men in politics is to bring this about.

PEACE BY COMPULSION
SOME PRACTICAL DIFFICULTIES IN THE PATH OF THE
OPERATION OF THE PROPOSED LEAGUE OF PEACE—
IT WOULD NECESSITATE A RADICAL CHANGE OF
POLICY ON THE PART OF THE UNITED STATES

BY
JAMES BROWN SCOTT

[DIRECTOR OF THE CARNEGIE ENDOWMENT FOR UNIVERSAL PEACE]

In regard to the proposition to employ force to compel international peace, it seems to me that the use of force cannot be safely entrusted to any nation or group of nations; that the United States would not consent to grant such a right to a power or group of powers; and that, therefore, we should not ask that we ourselves be allowed to use force in certain cases.

One can easily think of cases in which we would not consent to arbitrate. For instance, if Denmark should sell St. Thomas to Germany, or if Mexico should make a cession of Magdalena Bay to Japan, we would undoubtedly insist that the cession in either case was void, as contravening our policy, and, if the cessionaire refused to cancel the cession, we would prevent the occupation of the territories in question by force. We would not submit the question to an international tribunal, because under international law Denmark and Mexico would have the right to make such cessions. We could not or would not submit the question to a Council of Conciliation, because its recommendation would be against a policy which the people of the United States insist upon. If the foreign country insisted upon the cession and took possession, as it would have the legal right to do, war

might result. There are other illustrations. I merely mention two which have figured from time to time in the press.

It may be well, however, to give a further sample or two. Suppose that Russia and Japan should fall out over their rights in Manchuria, and Russia or Japan should use force against the other. Would the United States be willing to use its land and naval forces against either one or the other of these two great powers? Or suppose that the demands which Japan might feel justified in making upon China, either now or during the course of the war, or indeed after its termination, should be of a kind which China could not accept without sacrificing its independence, and Japan should thereupon use force, although China offered to submit the question to arbitration, would the United States, as a party to the League of Peace, use its land and naval forces against Japan? Or would the United States be willing to become a party to a League which might have pledged its good faith to do so?

And speaking of the proposed League of Peace, I notice that its partizans do not contemplate the use of force to compel the execution of a judgment. Force is to be used to get the parties into court or before the Council of Conciliation; that is to say, in case of a nation that refuses to submit its case to the court or to the council and invades the territory of the country with which it is in controversy, the members of the League bind themselves to unite their forces with the other party willing to arbitrate, and to use their forces thus combined against the nation going to war instead of arbitrating the dispute. If public opinion can be depended upon to execute the award, cannot public opinion be depended upon to force nations into court, if only the controversy be made public and public opinion be given a chance?

The suggestion of a League of Peace is very attractive in that it does not propose any particular kind of solution, but contents itself with the statement that the difference, whatever it is, shall be settled peaceably, leaving it to the parties in dispute to determine the form and nature of the adjustment. Some of the speakers at the Philadelphia gathering, in referring to the proposition of using force against a recalcitrant nation, admitted that the United States would need to change its policy in order to become a party to the League, but felt that the United States should be willing to do so. I gather the impression that such speakers had in mind the use of force by the United States against other countries, not the use of force by other

parties to compel the United States to settle a dispute peaceably which our people might be unwilling to arbitrate or submit to a Council of conciliation. We might be willing for instance, to combine with other nations to use force against a weak power, but I doubt whether we would be willing to use force against a nation such as Germany over the Servian question, and I feel sure that we would be unwilling to allow foreign nations a right to use force against us.

THE MILITARIST

BY
JOHN EDWARD OSTER

A militarist is a blind, heartless, soulless, murderous, irrational being. He is not a man. He is a savage either in heart or manners or both, and is not even a brute, for a brute kills only in self-defense, or for the want of food. He has the feelings, thoughts and inclinations creditable to the worst beast, but not to civilized man.

Without the slightest doubt, the lowest occupation that a man can have is to be a militarist, and it matters not if it is his vocation, avocation, or, whether he is merely an abettor, accessory or accomplice. When he becomes active he is a soldier and then he can no longer distinguish right from wrong, and as far as humanity is concerned, he ceases to think, and is not allowed to reason under any circumstances, and his only alternative is obedience to the commands of his superior, or he is shot with less compunction than a stray dog.

Uncompromising obedience is the first law of militarism, consequently, he obeys without hesitation when ordered to fire on his fellow citizens, on his nearest friends, on his fond children, on his aged parents, or even on his beloved wife. When he is ordered to fire down a crowded thoroughfare where poor non-combatants and emaciated victims of military rule are clamoring for bread, he instantly obeys and sees the wrinkles of old age filled with gore, and the gray hair of fathers and mothers stained with red blood, and streams of life blood gushing from the mangled breasts of helpless women, feeling neither pity nor compunction of conscience.

The militarist is responsible either directly or indirectly for the state of mind which causes these cruelties. The mind is so calloused by the spirit of inhumanity which the militarist fosters, and by the atrocities which according to his reasoning he rightfully practices, that without giving a thought, he will, when appointed as a member of a firing squad to execute an illustrious hero or public benefactor, shoot him down without hesitation, although knowing that the bullet kills one of the noblest men who ever lived on earth.

The militarist thinks in terms of bloodshed, and measures everything in terms of force, hence, his encouragement of the use and application of murderous machinery and methods by the nations of the earth.

The militarist is responsible for the existence of the soldier, whose mind, conscience, life, and very soul are in the keeping of his officers, for all that was human in him, all that was religious in him, and everything that constitutes the distinctive qualities of manhood was sworn away when he took the oath of enlistment.

The mind of the militarist is bounded on the North by Blood, on the East by Envy and Hate, on the South by Sorrow, Horrors and Distress, and on the West by Demolition, Destruction, Devastation and Gore.

The militaristic mind travels in a trench by stage coach, lives in a cave, reads ancient tomes by candle light, thinks of the enemy skulking about, and fears that an antagonist is lurking in every nook and corner, and that behind every tree and fence foes are lying in ambush. It is blind to everything that has happened since the dawn of civilization, and is seemingly ignorant of the results of progress and of almost every matter of common knowledge regarding civilized conditions of life. It requires proof of what every mind knows—that we are not bloodthirsty cannibalistic enemies—and in spite of that construes plain English language and International Law to mean something entirely different from what Webster ever imagined or any other mind would deem possible.

Be it remembered, however, that while the Militaristic Mind lives under the conditions before stated, the Militaristic Personage uses electricity, the telephone, telegraph, aeroplane, the Palatial Hotel, long range telescopes, high explosives, rapid firers, and all other modern conveniences and luxuries produced by civilization, which the Militaristic Mind ignores—the

owner of the Militaristic Mind being entirely distinct from the Mind itself, and quite fully aware of changed conditions.

The Militaristic Mind is unable to see anything but fighting, which in reality is wholesale murder, but as he sees it, it is merely right being packed up by might, as was believed in the dark uncivilized days when wild tribes first banded together for purposes of massacre on a larger and more effective scale. It teetotally objects to change in the settling of disputes between nations, and still wishes to annihilate the enemy who has the unbridled audacity to disagree, and still wishes to continue smashing and cutting the enemy to pieces rather than recognize civilized methods of settling international misunderstandings, methods in harmony with the times.

To the Militaristic Mind the idea that life is more sacred than property is the most abhorrent possible. The Militaristic Mind, however, has great merits and shows great possibilities when occasionally it breaks from its fetters, and would be a very excellent sort of mind if it was only humane as well as inhuman; but being the latter apparently prevents it from being the former. But there is hope for the Militaristic Mind. It has been getting so many shocks and severe jolts in the past few months that a fissure must soon appear in it through which common sense and the ideas of modern civilization will penetrate and seep in, and in time undermine its rock-ribbed precedents and prejudices.

Freed from the smoke, rust, and cobwebs which now enmesh it everybody will admire and respect it, instead of being, as nearly everybody is now, irritated by it.

Everything considered, no man can fall lower in the scale of humanity than a militarist—it is a depth beneath which we cannot go, for the greatest thing in the world is man, and the greatest thing in man is mind, therefore, one who concocts and schemes to destroy ruthlessly and wantonly, the greatest thing in the world, is the worst enemy the world contains, and the rock bottom of the depth has been reached by this arch murderer.

There is no such thing as being neutral in this regard. Every individual is either a militarist, or he is opposed to it. When the sheep are separated from the goats, one camp or the other will be supported by an extra member, and that extra member is you, therefore be sure and be counted on the right side.

Having to choose between the two alternatives of safety and war, or in other words between peace, good will and hell, strange to say, some choose the worst, which seems incredible and leads one to think them helplessly hopeless. The time is at hand for the population of the world to recognize the fallacy of force and the perniciousness of that abominable, detestable doctrine, by inaugurating conciliatory methods appropriate to the present standard of civilization.

A PEACE SUGGESTION

IN A WARLIKE GUISE—AN EFFECTIVE POLICY OF NAVAL DEFENSE FOR THE UNITED STATES AT A MINIMUM COST

Samuel Lake, who is called the father of the “even-keel submarine,” a device the use of which has given the German submarines such terrible efficiency, gives some interesting views of the future of this terror of the seas in an interview published in a prominent daily paper. We have all seen during the past year how mechanical and chemical invention has added to the horrors of war. The query most vital to the future of peace is as to whether the further development and perfection of such devices will not make war so horrible that it will be impossible.

Mr. Lake is the head of a great submarine shipyard at Bridgeport, Conn., and speaks with the authority of an expert.

He expresses his firm belief that when the submarine is fully recognized and when the governments of the great nations fully prepare themselves for defense and offense with such craft, “there and then naval war will cease!”

Submarine preparedness will not end marine warfare merely by making it horrible, for horrors do not deter men from belligerency, but by making successful operations by other naval vessels impossible. Mr. Lake thinks that Germany has been moved to keep her fleet locked up in safe harbors more by fear of the allied submarines than by fear of the allied dreadnoughts. It is to be noted that the Allies have not made such effective use of submarines in this war as the Germans have, but this is not because the Allies are not equipped with these under water craft. They have, in the aggregate, more than Germany has, but they have had few German sea-going craft to operate on. The German merchant marine was swept from the

seas at the very outset of hostilities, and the German fighting craft, except the submarines, have been kept safely hidden.

Applying his theory to the elucidation of a proper defensive policy for the United States, Mr. Lake says: "The United States can make itself so strong that it will be practically beyond attack by providing itself with a sufficient number of submarines of a defensive type." In this view the creation of a big submarine navy by this country would not be a policy of aggression, for the submarines can not be effectively used to attack shore defenses or to land armies abroad, but it would be simply a provision of prudence to guard our own shores from hostile fleets and hostile armies.

A fleet of submarines, provided with sufficient freeboard and buoyancy to permit themselves to ride at anchor comfortably in all weathers, fitted with submarine signals, searchlights, sound-receiving apparatus and wireless, if there were enough of them to form a cordon about the city or harbor to be defended, could not, in Mr. Lake's opinion, be beaten.

He estimates the number needed for the effective defense of our east and west coasts at one hundred and fifty, the cost of which would not be more than the cost of five super-dreadnoughts. He also believes that the speed of the submarines can be developed to 25 knots an hour, which is the maximum speed of the larger and heavier craft of the great navies. This would enable them to surround the big battleships coming near our coast, and in many cases to pursue them farther out to sea. The smaller ones could be shipped by rail if it should be found necessary to quickly concentrate a fleet of under sea boats at any particular point on sea coast or lake or river. These smaller submarines Mr. Lake calls amphibious boats, and they would be in addition to the large submarine craft stationed in or near the harbors. In a comprehensive statement of the general merits of this plan of national defense, the inventor says:

"The moment a hostile fleet appeared near any port, submarines could be rushed to that port in such numbers as were deemed necessary—and they would 'get' the hostile fleet. No doubt about it.

"Really, for coast defense, such a fleet of submarines could be more speedily mobilized than the fastest fleet of battle cruisers and super dreadnoughts.

"If an attack threatened Charlestown, submarines could proceed by rail from New York at thirty-five miles an hour, in certain safety.

"Delivery of such boats as I refer to could begin within nine months, and three or four a month could be delivered thereafter, using only existing facilities.

“We have plenty of shops which could turn out the gasoline engines they would need. Diesel oil engines are superior for a boat can be run twice as far on a given quantity at one-fifth the cost, and the heavy oil used in Diesel engines is non-explosive, but the disadvantages of gasoline could be largely overcome by carrying the fluid in tanks outside the boat. Thus a supply for 500 miles of cruising could be carried without danger.

“I believe this suggestion for the provision of amphibious submarines to be the most important suggestion for the defense of the United States which has been made in many years. It offers the quickest, the most effective, and the least expensive defense so far imaginable.

“Our capacity for turning out craft of this type would be enormous.

“All lake and ocean yards could build the hulls, all the automobile and boat engine building plants could build engines for them, and there are several electric appliance and storage battery plants that could build the electrical equipment.

“To my mind, the day is close at hand when the only safe place for a battleship will be an interned pond closely protected against land attack.

“And let us consider the cost of maintaining such a defensive fleet in time of peace, comparing it to the cost of the conventional modern naval fleet. To man a submarine of the coast defense type will require twenty men, while the amphibious submarines which I have suggested can be manned by crews of ten men each.

“Say we had fifty of the amphibious boats. That would require a total of 500 men. Estimate the force necessary to man the coast defense type at 3,000 men. Thus, less than 4,000 men would give us a perfect defense for every harbor in America, and, I think, could prevent any invading force from landing elsewhere on our shores.

“The system would be immensely superior to our present coast defense system, each fort or group of forts of which defends only a small radius of territory immediately adjacent thereto. This submarine defense, through its mobility, would defend not only our harbors, but every inch of our shore line.”

ECONOMIC WORTH OF WAR ORDERS

A banker pointed out recently that too much stress might be laid on the fact that the extra business being done by arms and ammunition making concerns is of a temporary sort. The profits entailed, he said, would not prove to be simply an unexpected inflow of cash to be distributed to stockholders and considered merely as a gift of fortune. The extraordinary earnings would be used in part to strengthen the position of many companies for the future, funded debts in the way of long term issues as well as temporary loans would be liquidated and working capital sufficient for increased manufacturing needs would be laid aside. Knowledge of this far-reaching value of war orders, the banker thought, was receiving more consideration from thoughtful investors than the desire for big extra dividends.

New York *Times*.

PAUPERISM DECREASING

Pauperism is decreasing in the United States, according to the latest statement issued by the U. S. Census Bureau. "The ratio of almshouse paupers has steadily declined at every census since 1880," declares the bureau's last bulletin. In detail, the bureau reports that one third of the paupers in the almshouses in 1910 were under fifty-five years of age and one third over seventy years of age; the males outnumbered the females two to one, and there was a preponderance of persons of foreign birth.

The important fact brought out, however, is that the almshouse population is not only actually decreasing but is also steadily assuming a more shifting character, which means that the poor-houses are becoming merely a temporary shelter instead of a permanent home for the unfortunates who are compelled to take advantage of their hospitality.

THE TENANT FARMER

The Socialists are working overtime in an effort to frighten the people with their tales about the tenant farmer. They point out that the tenant farmers have increased much faster than homeowning farmers, there being about 8 per cent. of the latter as against about 16 per cent. of the former. Recently the United States government made an investigation into the condition of the tenant farmer in the three states of Indiana, Illinois and Iowa and from this we find that the average size of farms managed by tenants for the three states is 172 acres; that the average income of each farm is \$1,732, and the average expense \$740, leaving for the average tenant farmer an income of \$992 a year.

Mother: "Willie, I'm shocked at you. Do you know what becomes of little boys who use bad words when they play baseball?"

Willie: "Yes'm. They grow up and become golf players."

—*Boston Transcript.*

THE INFORMATION DESK

Samuel Gompers, President of the American Federation of Labor, in a letter recently made public, declared his abhorrence of war, but at the same time his belief that there are some things more abhorrent than war. One of these things would be to be robbed of the birthright of freedom, justice, safety and character. "Against any attempt of any person or group of persons, or nation or nations, to undermine or destroy these fundamentals of normal human existence and development," he adds, "I would not only fight to defeat it, but would try to prevail upon every red-blooded liberty and humanity loving man to resist to the last degree."

President Kilpatrick, of the School Garden Association of America, in an address at Labor Temple in New York, deprecated the general disposition to educate all children to live in the city. "It is time," he said, "we should educate them so that they will have an opportunity to make a choice if they wish to do so." To this end he would encourage classes in rural and household economics, and give the advantages of country living a fair show.

The trade balance of the United States for the current year seems likely to exceed a billion dollars. This is due to unusually large exports of food stuffs at high prices, and to exports of war supplies and munitions.

This year's crops in the United States give promise of unusual abundance. The estimate is for 950,000,000 bushels of wheat, 1,300,000,000 of oats, and about three billion bushels of corn. There will probably be some reduction in the cotton crop because of the substitution of

food crops for cotton in most of the cotton states. A smaller cotton crop will naturally mean better prices for that staple. So on the whole the outlook for continued prosperity in the United States is good if this country remains at peace.

If the Mexican people possessed intelligence and courage enough to demand and enforce the cessation of murderous activities by their bandit leaders, that country might now enjoy great material prosperity, for it is rich in things which the world is paying high prices for. It has copper, rubber, and petroleum, as well as gold and silver, and a soil that could be made to produce abundant food crops.

The recently issued Summer Social Register of 1915 shows a reduction of 75 per cent. in foreign residences or banking addresses abroad of Americans. This indicates the effect of the war on society in restricting foreign travel from this country. A Wall Street note also indicates that many notable financiers and captains of industry are taking their summer vacations in visits to the Pacific Coast and other portions of their own country instead of the usual European visit. The tourist agencies have also changed their activities to promoting "seeing America first."

Some time ago Prof. Kuno Meyer predicted that the present war, instead of being quickly ended, would develop into a world-wide war, in which America would try to remain neutral, but would ultimately have to fight to protect her own interests. Let us hope that Prof. Meyer is too pessimistic. Already there are some significant signs that peace may not be so far off as some people suppose.

Miss Angela Morgan, one of the American delegates to the International Women's Conference at The Hague, says that German college professors whose names are well known in the United States told her that they were opposed to the annexation of Belgium or any other foreign territory.

The old Latin motto to learn from the enemy might be applied with advantage (to themselves) by the British nation whose eminent leaders are complaining of slack work in the manufacture of munitions of war. A neutral correspondent of a London paper, returning from Germany says the workmen in German ammunition factories put in fifteen to twenty hours' continuous work at a shift; that they never strike and never go on a vacation. Every worker works with the utmost diligence and energy of which he is capable, because he knows that if he slacks he will be sent to the front and placed on the firing line. This is war.

The American *Army and Navy Journal* thinks that militarism will not be dead no matter who wins in the great war. It prophesies that when the conflict does end "everything points to a continuance of the military systems as they existed before the war, strengthened and expanded in accordance with the lessons learned from the conflict now raging." The only thing that can save the world from such a calamity is the establishment of a World Court for Judicial Settlement by the agreement of the majority of the great nations.

Speaking of the talk of war with Germany over the *Lusitania* tragedy, Cryus Northrop, President of the Minnesota Peace Society, and President Emeritus of the Minnesota University, said in an address to the students: "It is easy to talk of drastic measures, but what could we do in the event of war? Could we send our Navy over there? Where are the 48 British Dreadnaughts? We cannot suppose any different treatment would be accorded our fleet if we went over there. And could we send our army over there to be killed under ground? The idea is preposterous."

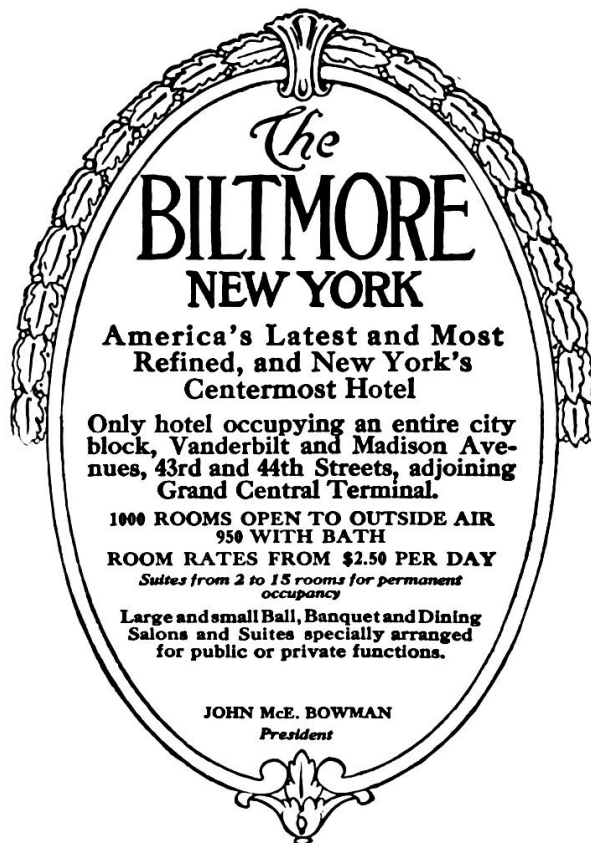
The most prominent person who has called ex-Secretary Bryan a traitor is Colonel Henry Watterson, the most distinguished Democratic Editor in the country. He said in his paper, the *Louisville Courier Journal*, under the caption, "Treachery Unspeakable." "The President's note (to Germany) contains nothing which should jostle the Imperial sensibilities, but the actions and utterances of Mr. Bryan cannot be so dismissed. Men have been shot and beheaded, even hanged, drawn and quartered, for treason less heinous. The recent Secretary of State commits not merely treason to the

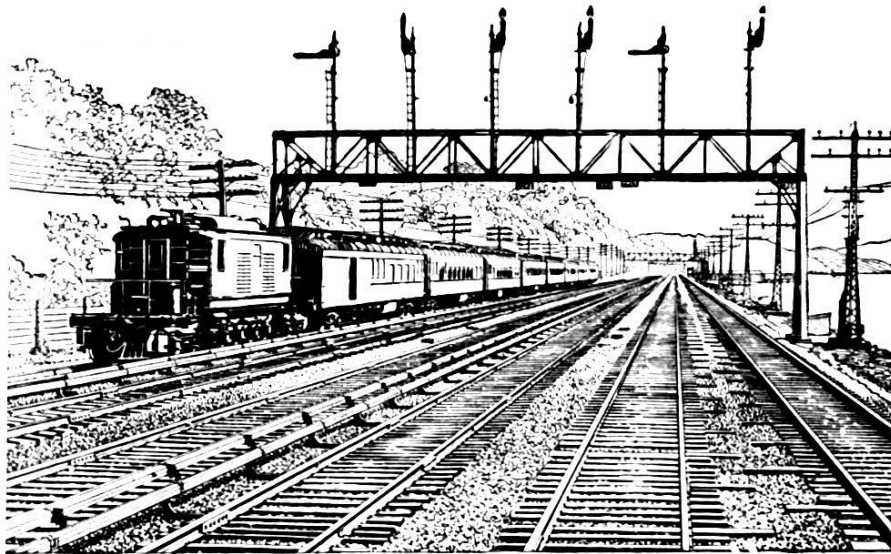
country at a critical moment, but treachery to his party and its official head.”

H. G. Wells, the famous British author, in a recent letter to the *London Times*, severely criticised his government for lack of efficiency in carrying on the war. He says: “Throughout almost the entire range of our belligerent activities we are conservative, imitative and amateurish, when victory can fall only to the most vigorous employment of the best scientific of all conceivable needs and material. Unless our politicians can perform the crowning service of organizing science in war more thoroughly, I do not see any great hope of a really glorious and satisfactory triumph for us in this monstrous struggle.”

Senator Henry Cabot Lodge, of Massachusetts, in an address at the Commencement Exercises of Union College, said it would be as futile to abolish armaments as it would be to abolish knives because knives often inflict wounds. The reason of war, in his opinion, lies far deeper than armaments—it is the desire to use armaments wrongly for aggression. A general reduction of armaments should be sought with earnestness, “but for one nation to disarm and leave itself defenseless in an armed world is a direct incentive and an invitation to war.”

Governor McCreary of Kentucky is a believer in peace, but, unlike William Jennings Bryan, a believer in peace with honor. He is quoted as saying recently: “If the flag of the United States is insulted on land or sea I am ready for war, and in the event of war I shall exercise my prerogative as Commander in Chief of Kentucky troops and go to the front.”





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“The Water Level Route”

“There is a certain solidity and permanence about this concern which smacks of nothing unfinished.”

*Albert W. Atwood
in Harper’s Weekly*



TRANSCRIBER'S NOTES

1. Silently corrected obvious typographical errors and variations in spelling.
2. Retained archaic, non-standard, and uncertain spellings as printed.

*** END OF THE PROJECT GUTENBERG EBOOK THE WORLD
COURT (VOL. I, NO. 2, SEPT. 1915) ***

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